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국제학석사학위논문

Inherent Bias in
Multilateral Development Bank
Accountability Mechanisms:
An Examination of the
Asian Development Bank

다자개발은행 책임기제에 내재된 편의:
아시아개발은행 사례 분석

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서울대학교 국제대학원

국제대학과 국제협력전공

박 수 민

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Abstract

Inherent Bias in Multilateral Development Bank Accountability Mechanisms: An Examination of the Asian Development Bank

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This paper aims to explain one of the reasons behind the persistence of underdevelopment through the examination of the accountability mechanism of the Asian Development Bank. Multilateral Development Banks, such as the Asian Development Bank, have initiated and implemented numerous projects and programs in various fields and sectors for development. Yet many of them lead to more harm than good due to poor planning and execution, and communication problems. To solve the detrimental effects of the harm caused, accountability mechanisms were institutionalized but many problems have persisted. The paper focuses on the issue of bias in the accountability mechanism of the Asian Development Bank. After an analysis of related studies and the structure and processes of accountability mechanism, all cases in the Asian Development Bank accountability mechanism from 2004 to 2016 are analyzed in

relation to the determination of eligibility, the execution of the process, and the reporting of results. In the analysis, the research found that a significant number of the Office of the Special Project Facilitator complaints had questionable reasons for ineligibility; that sixty percent of dissatisfactory Compliance Review Panel cases had accusations of bias in the review; that there are still serious issues such as deaths and human right violations given insignificant attention in the Compliance Review Panel review; and that the Office of the Special Project Facilitator has shown less signs of bias in its process as compared to the Compliance Review Panel due to the nature and scope of its function.

Keywords: Bias, Multilateral Development Bank; Asian Development Bank; Accountability; External Accountability; Grievance Redress; Compliance Review; Problem Solving Function

Student Number: 2013-22705

국문초록

다자개발은행 책임기제에 내재된 편의: 아시아개발은행 사례 분석

본 논문은 아시아개발은행 책임기제 분석을 통해 저개발 원인 중 한 가닥에 대한 이해를 증진하려 한다. 아시아개발은행과 같은 다자개발은행들은 국제개발이란 명목 하에 다양한 영역에 수많은 프로젝트와 프로그램들을 기획하고 시행해왔다, 그럼에도 불구하고 적지 않은 사례들을 통해 그 프로젝트와 프로그램들이 득보다 실을 초래한 것을 알 수 있다. 기획 및 시행, 커뮤니케이션 문제가 확실히 있었음을 알 수 있다. 피해확산을 저지하기 위해 책임기제를 제도화 했지만 문제는 계속 되었다. 본 논문은 관련연구, 아시아개발은행 책임기제의 구조와 과정, 그리고 2004년부터 2016년까지 아시아개발은행 책임기제의 모든 사례들을 분석했다. 사례들은 자격결정과정, 과정시행, 그리고 결과발표 중점으로 분석했다. 분석 결과, 본 논문은 Office of the Special Project Facilitator 에서 상당히 많은 사례들이 불명확한 기준으로 검토를 거절당한 점, 불만족스러운 평가를 받은 Compliance Review Panel 사례들의 60%이 책임기제의 편향을 비난한 점, Compliance Review Panel 검토가 사망사고와 인권 침해와 같은 심각한 문제들 간과한다는 점,

Office of the Special Project Facilitator 가 Compliance Review Panel 보다
역할과 권한 차이로 인해 덜 편향적이라는 점을 알아냈다.

키워드: 편향, 다자개발은행; 아시아개발은행; 책무성; 외부 책무성; 불만 해결;
Compliance Review; Problem Solving Function

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List of Abbreviations

ADB	Asian Development Bank
AM	Accountability Mechanism
CRP	Compliance Review Panel
EIA	Environmental Impact Assessment
FR	Final Report
IFI	International Financial Institution
IO	International Organization
IRP	Involuntary Resettlement Policy
MDB	Multilateral Development Bank
NGO	Non-governmental Organization
OCRP	Office of the Compliance Review Panel
OD	Operation Department
OSPF	Office of the Project Special Facilitator
PAP	Project Affected People
RAR	Review and Assessment Report
SIA	Social Impact Assessment
TA	Technical Assistance
TOR	Terms of Reference
UN	United Nations
WB	World Bank

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I. Introduction

Introduction

The international community has been striving to develop the poorest countries in the world since the 1940s yet still there are so many people in need. Regarding this issue, there have been various attempts to explain the reasons behind the persistence of underdevelopment and the lack of accountability in aid is one of them. Multilateral Development Banks (MDB), which are part of the International Financial Institutions (IFI), are institutions that have been created for the development of its constituent member states by providing finances and consulting services.¹ These institutions have initiated and implemented numerous projects and programs in various fields and sectors for the development of its main targets. However, in the attempts to better the lives of the beneficiaries, the works of the institutions sometimes lead to more harm than good. These consequences usually arose from poor planning and execution, and communication problems. Publicly, all the institutions engaged in ideal and proper planning, monitoring and evaluation for their projects and programs. Yet, the results of many cases showed otherwise. For a period of time, project affected people (PAP) did not have channels to redress their grievances. This is reason why the concept of accountability rose to the field. The World Bank (WB) initiated their Accountability

¹ Examples of MDBs are the World Bank (WB), the European Bank for Reconstruction and Development (EBRD), the Inter-American Development Bank (IDB), the African Development Bank (AfDB), and the Asian Development Bank (ADB).

Mechanism (AM) in 1993, to which other MDBs followed. Among these MDBs is the Asian Development Bank (ADB) which has the mandate to develop the continent with the most number of people in poverty.

The Asian Development Bank (ADB) was established in the 1960s to “foster economic growth and cooperation” in poor regions of Asia (Asian Development Bank 2016). In the development agenda, the ADB has been mainly supporting infrastructure programs (Settel, Chowdhury and Orr 2009). In similar context to other MDBs, these infrastructure programs sometimes caused more harm than good due to oversights in planning. People who were adversely affected by the ADB programs were not able to redress grievances, which were also indicators of detrimental effects on development. The ADB programs usually created detrimental effects on development such as development-induced displacement (Edington 2014), irreparable damage on environments, and threats on the livelihood of indigenous peoples (Clark, Fox, & Treacle, 2003; Soutar, 2007), going against what their safeguards on these issues were made for. These unwanted and unforeseen effects affected millions of people over their decades of programs and the need for properly functioning accountability were paramount.

Through the demands of powerful stakeholders to account for the interests of people affected, the ADB created their Accountability Mechanism in 1995 (Park 2015).² The ADB’s attempts at AM proved ineffectual because of various reasons such as Developing Member Country (DMC) resistance, lack of transparency, and relative inaccessibility of the AM (Park 2015). Due to this, the AM itself caused numerous

² Inspection function (1995-2002); was overhauled to the current compliance review function and problem-solving function in 2003.

complaints and protests across the region (Tadem 2003). The AM proved to be problematic on many accounts, which led to its overhaul in 2003 and revision in 2012 (Asian Development Bank 2016).

Despite the ADB's attempts to revise its AM, many problems persist. Issues such as accessibility of the AM, independence of the AM offices, and the limited scope and powers of the AM remain to be significant knockbacks in the AM. On the review of the complaints to the ADB, less than 30 percent of all complaints were assessed eligible for the AM.³ Among the cases that were handled by the Compliance Review Panel (CRP), only a quarter of claimants were satisfied with the mediation by the Office of the Special Project Facilitator (OSPF) (Park 2015).⁴ The other claimants raised problems in the mediation such as inability to provide remedies, inaction during mediation despite needs, and bias favoring the ADB (Park 2015). At this point, there is clearly a need to examine this problem and provide solutions for better mechanisms.

The research would focus on the last point, which is bias in the AM of ADB. An overview of accountability in development, with special focus on bias and related studies, will be written in Chapter 2. Following, the analytical framework and methodology will be explained and the data to be utilized for this research will be specified in Chapter 3. Then, the Accountability Mechanism in the Asian Development Bank as to its structure and processes will be explained in Chapter 4. After which, the cases of the AM in relation to the determination of eligibility, the execution of the process, and the reporting of results will be analyzed in Chapter 5. Finally, the conclusion and recommendations

³ Assessed on 20 October 2016; complaints from 2004-2016 (after the overhaul in 2003).

⁴ There were eight cases in total (2003-2014); currently there are eleven cases.

will be written in Chapter 6.

Research Question

The main research question in this study is, ‘are accountability mechanism processes in the Asian Development Bank biased to diminish their external accountability?’ Dissecting this question, the research delves into questions wherein bias is analyzed in the determination of eligibility of complaints, the analysis in the compliance reviews, the execution in the problem solving function, and the publishing of results. In the determination of eligibility of the complaints, the question of whether complaints were considered on a clear criteria, through a transparent and informative process would be the criteria for analysis. In the analysis in the compliance reviews, the question of whether the reviews were done with clear reasoning, professionalism, consent, appropriateness, sensitivity, and other criteria would be taken into consideration. In the execution of the problem solving function, the question of neutrality in the investigation and the consultations, and the time and effort spent on the agreement of stakeholders along with other criteria would be taken into consideration. In the publishing of results, the question of whether the results of the processes were reported in a neutral tone, with logical distribution of focus on issues, along with other criteria would be considered into consideration.⁵

⁵ The GAP guidelines (Blagescu de Las Casas, and Lloyd 2005) on evaluation were utilized in understanding various criteria for analysis of accountability for this case.

II. Review of Related Literature

External Accountability

According to Keohane (2003), accountability is the relationship where claimants can make demands on agents to report their activities and impose costs on agents for their actions. Accountability can be democratic, hierarchic, and pluralistic, and can be divided into internal accountability and external accountability. Internal accountability is based on authorization and support, close to the mechanics of a hierarchy. External accountability is based on impact, that is, to those whose lives are affected.

The concept of external accountability causes serious normative problems because having been affected by an act in itself cannot be “sufficient to create a valid claim.” There is a need to distinguish accountability from liability. According to Bergsteiner (2011), accountability and liability are similar in the sense that both involve “considerations of duty, obligation, responsibility or hazard,” but are different because liabilities arises out of contracts, torts, and statutes, and because of implications on actions that are absent of fault. In other words, “there can be liability in the absence of fault” but not necessarily for accountability.

This is the external accountability problem with international organizations (IO) like the United Nations (UN) and the international financial institutions (IFI). Most, if not all, of the IOs enjoy the right of immunity in many cases involving damages. The term ‘accountability’ is rather more a voluntary concept than ‘liability.’ So, therein, the

process for accountability in the Asian Development Bank needs to be understood in this context.

One important factor, as Keohane (2003) points out, is that “the ability to avoid being externally accountable can be viewed as one dimension of power.” There are significant “accountability gaps” between IOs and project-affected people (PAP). IOs want to account for less while PAPs want IOs to account for more. Enough to say, there have been attempts to fill these gaps, and the gap has been narrowed. However, over the past two decades IOs have become more externally accountable, not necessarily because of external forces but because of pressures from internal forces, the stakeholder states. These stakeholder states, the states that are known to have extensive influence over the bank, act on the accountability issue mainly for benefits rather than “accountability for its own sake” (Keohane 2003). The stakeholder states benefit by showing the upright image of accountability and other recognized global values.

Yet, the accountability gaps need to be narrowed further. The Accountability Mechanism have been institutionalized within the ADB for external accountability. This has been in adherence to the changing accepted standards of behavior across the international arena (Ebrahim and Weisband 2007). However, these changes have not genuinely produced external accountability due to lack of independence in the AM. There is a confusion on whether the Compliance Review Panel and the Special Facilitator, the two strands of the AM in the ADB, is internally or externally accountable. The lack of independence leads to the biases that arise in the AM to favor the ADB and stakeholder states, and thus making the AM seem rather internally accountable.

Bias in Multilateral Development Banks

Undoubtedly, the highest decision-making bodies of most IOs including multilateral development banks have been controlled by a few stakeholder states. There is even a study on the U.S. legislative processes behind the International Monetary Fund and the World Bank (Lavelle 2011). As Grant and Keohane (2005) describe, multinational organizations are weak to states. It is from that standpoint that it may be inevitable for AM in multilateral development banks to be biased in favor to themselves and their stakeholder states. Based on cognitive dissonance theory, PAP's cognitions about the problem may not be consistent with that of the Board of Directors in the ADB. In theory, such dissonance causes psychological discomfort which leads to action for reconciliation, which people working in AM will have to do. It is foreseen that when the problem and its corresponding remedy is reconcilable, the AM would readily adhere to the joint opinion of the complainants and the superiors. However, decisions will tend to be biased when it such dissonance is irreconcilable, and it will likely favor the ADB and stakeholder states.

Another factor which may lead to bias is the "problem of many hands" (Bergsteiner 2011). Projects by multilateral development banks involve many actors. Government offices, NGOs, interest groups, community groups, residents, businesses, and other stakeholders may be involved in the design and implementation of the project. Following, it may be difficult to outline the fault of multilateral development banks in the midst of various actors involved. This can blur the boundaries of the accountability of multilateral development banks to their favor.

In contrast, the multilateral development banks do favor the PAPs even when it does not seem to be at fault. Fryer (2001) presents a dilemma of a baby injured where a company which had no fault for the injury provided compensation regardless because of public sentiment. This applies to decisions made by multilateral development banks with regard to PAPs. Their considerations for AM may not for the purpose of being accountable but rather because stakeholder states are sensitive to public sentiments.

Related Studies on External Accountability and Bias in ADB

There was no separate study on the Accountability Mechanism of the Asian Development Bank in relation to bias, to date. Furthermore, there were not many studies on the Accountability Mechanism of the Asian Development Bank in general.

Susan Park (2015) was one of the few people who researched about the Accountability Mechanism of the Asian Development Bank. She investigated the Accountability Mechanism from its creation until 2014. She used primary data analysis of published and unpublished documents to analyze the policy and process shifts in the AM of the ADB across the period. She also conducted 35 in-depth interviews relevant ADB staff, activists, and former U.S. officials. The study concluded that the accountability mechanism has brought some improvement in the resolution of critical issues, however, “progress is hampered by a lack of access, transparency, Developing Member Country (DMC) resistance, staff obstruction and a lack of independence in the mechanism.” This finding was the source of inspiration for this research. The research delved into the last finding, the lack of independence of the mechanism, and focused on the issue of bias in the Accountability Mechanism process.

Perera (2014) investigated the displacement-induced impoverishment in the Southern Transport Development Project (in Sri Lanka). The study showed how the AM provided venues for complaints (where no effective remedies were provided) and worsened situations by delaying project implementation and raising costs. This study, like a few others, did not study the presence of bias in the AM. However, they provide a different perspective on the cases in comparison with ADB and NGO documents.

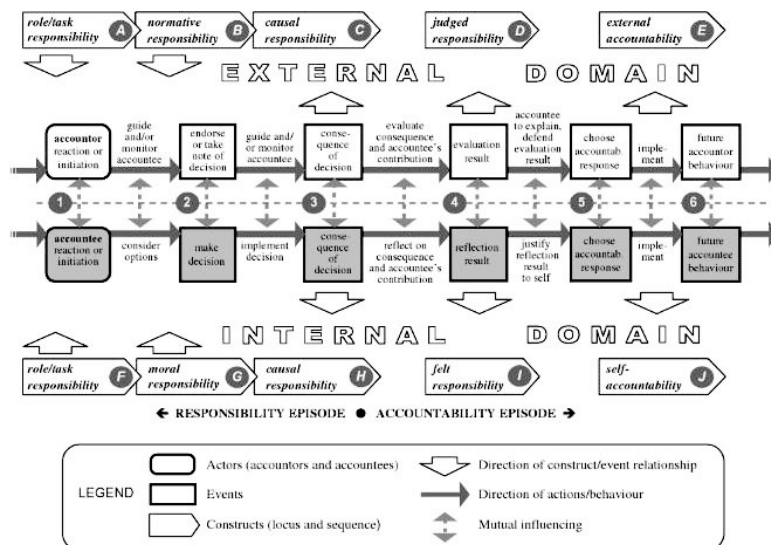
Various publications by NGOs dealt with the cases at hand with more detail on the issue of bias. The content of these publications are in Chapter 5.

III. Analytical Framework and Methodology

Analytical Framework

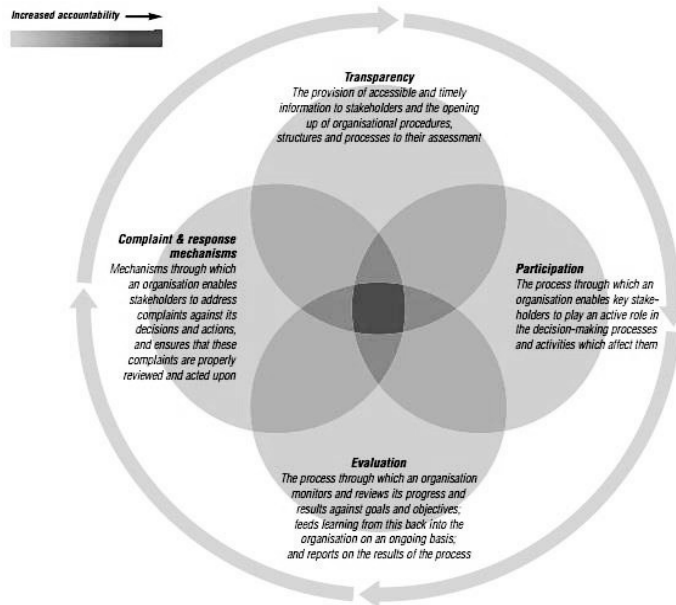
The study will utilize two models, the Global Accountability Project (GAP) Model and the Integrative Responsibility and Accountability Model (IRAM). Blagescu et al. (2005) articulated the GAP Model which provides guidelines on evaluating the accountability of intergovernmental organizations, transnational corporations, and international non-governmental organizations. The model divides accountability into four components: transparency, participation, evaluations, and complaint and response mechanism. The researcher will utilize the guidelines on evaluation which include the

Figure 1. Integrative Responsibility and Accountability Model (IRAM)



Source: Bergsteiner, Harald. Accountability Theory Meets Accountability Practice. Bingley: Emerald Group Publishing, 2011.

Figure 2. Global Accountability Project (GAP) Model



Source: Blagescu, Monica, Lucy de Las Casas, and Robert Lloyd. Pathways to Accountability: The GAP Framework. London: One World Trust, 2005.

complaint and response mechanism guidelines.⁶ Bergsteiner (2011) articulated the IRAM which provides a holistic model of the various sources and types of responsibilities and the kinds of accountability that may arise of form different situations. He defines external accountability as “the process of subjectively or objectively evaluating the contribution that others have made to a consequence; where appropriate, calling on these others to account for the consequence and for how this consequence came about; and applying accountability responses...” He differentiates external accountability from self-accountability, which he defines as “the self-evaluation of behavior and its consequence(s), and any voluntary changes to behavior.” The researcher will utilize the model in distinguishing the internal and external domain of accountability,

⁶ See Appendix 1

in outlining the limits of external accountability, and in comparing the concept of self-accountability.

Bias has a broad meaning and can be adjusted in many scenarios. To delineate bias in this study, bias will be considered to be the “inclination of temperament or outlook” that leads to judgments made on the part of the CRP and the OSPF to favor other parties other than the complainants (Merriam-Webster n.d.). As mentioned in the research question, the judgments in the determination of eligibility of complaints, the analysis in the compliance reviews, the execution in the problem solving function, and the publishing of results, will be reviewed for bias.

Data

The study will focus on the cases in the AM after its overhaul in 2003. This is because significant changes have been made to the AM, making a review of previous cases unreasonable to assess current AM processes. The study will gather all complaints, decisions, notices, publications, requests, reports, and other primary data regarding the AM. The documents will be attained from the ADB and CRP websites. The study will also rely on secondary data from studies on the AM of ADB and other studies relating to ADB’s projects.

Methodology

The study will be a qualitative research, using content analysis of primary and secondary data obtained from the ADB and other independent researchers. Complaints, decisions, notices, publications, requests, reports, and other documents will be analyzed

to see biases in the determination of eligibility, proceedings of dialogue and mediation, submission of compliance review, recommendation of remedial actions, implementation of remedial actions, and submission of monitoring reports. All cases reviewed and pursued by the CRP and the OSPF from 2004 to 2016 will be reviewed. However, cases wherein complainants requested for non-disclosure of documents such as complaints, comments, and final reports cannot be selected for analysis because there is no data regarding it. For the analysis of bias in the determination of eligibility, the study will review all cases according to the reason of ineligibility. There were 2 ineligible cases for the CRP and 39 ineligible cases for the OSPF. For the compliance review, 8 out of 10 cases will be reviewed because the last cases have not finished the process. For the problem solving function, 15 out of 16 cases will be reviewed because the last case has not finished the process. Other documents available from the NGO Forum on ADB will also be considered for the determination of bias in the process. The IRAM and GAP guidelines will be used to analyze the AM in light of external accountability.

IV. Accountability Mechanism in the Asian Development Bank

Structure of the Asian Development Bank Accountability Mechanism⁷

The Asian Development Bank has 67 member states. Each member state has a governor and an alternate. The governors from member state comprise the Board of Governors, the highest policy-making body. The Board of Governors meets annually and in other occasions when called for the members of the Board of Governors or the Board of Directors. Among its powers, Board of Governors has the power to elect the Board of Directors and the President of the Bank.

The Board of Directors is comprised of 10 members who are not members of the Board of Governors.⁸ This body acts as the practical policy-making body in representation of the Board of Governors. The Directors hold office for 2 years and may be re-elected. The Board of Directors has the power to make decisions regarding the operations of the bank and approve the budget.

The President of the Bank is elected from a regional member state and cannot serve as a governor or a director during his or her term. The President holds office for 5 years and may be re-elected. The President is the ex-officio Chairman of the Board of Director, but with no voting rights except in case of ties where he or she has the casting vote. Among the President's powers, he or she is the chief of staff, "responsible for the

⁷ The structure of the Asian Development Bank has been written based on several ADB documents. The sources can be found in the references.

⁸ In the Board of Directors, 7 represent regional members and 3 represent non-regional members.

organization, appointment and dismissal of the officers and staff” (Asian Development Bank 1965).

The Compliance Review Panel is directly under the Board of Directors. The Panel has 3 members where the Chair of the Panel is a full-time member and the remaining are part-time members.⁹ The CRP reports to the Board of Directors on all matters except on two activities.¹⁰

The OPSF is directly under the President. The Special Project Facilitator is appointed for a 3 year term, which may be renewed for another term of 2 years. In the appointment of the facilitator, the candidate must not have worked on ADB related projects for a period of 5 years prior to the appointment.

Process of the Compliance Review¹¹

The first step in the compliance review is requesting Management response. The CRP first assesses the complaint and confirms if it falls under the CRP mandate. If it does fall under the mandate, the CRP sends the complaint to the Management for a response.¹² The time period allowed for the response is 21 days. A copy of the complaint is also sent to the Board Compliance Review Committee. Furthermore, the CRP also has to inform the borrower about receipt of the complaint and also the Board member from

⁹ The CRP needs to have 2 members from regional member states and 1 from a non-regional member state. Of the 2 regional member state members, 1 has to be from a developing country.

¹⁰ These 2 activities are reported to the Board Compliance Review Committee.

¹¹ This section is based on the compliance review process explained in the ADB website. The exact source can be found in the references.

¹² The identities of the complainants can be requested to be confidential.

the said borrowing country.¹³

The second step in the compliance review is determining eligibility. The time period allowed for the determination is 21 days after receiving the response from the Management. The complaint, Management's response, and other relevant document are reviewed for the determination. Then after determination, the concerned parties (complainants, borrower, Board member, Management, and operations department) need to be informs of the results.¹⁴ The complaint follows the next step if determined to be eligible for review.

The third step in the compliance review is receiving board authorization for the compliance review. The time period allowed for the authorization is 21 days after receiving the CRP recommendation. The recommendation is done though a report submitted to the Board Compliance Review Committee by the CRP. Through the Board Compliance Review Committee, the Board of Directors will receive and would need to authorize a compliance review. If the decision is made, the OCRP needs to inform the complainants of the decision within 7 days.

The fourth step in the compliance review is conducting compliance review. The time period allowed for this step varies. Within 10 days from receipt of Board authorization, The CRP needs to prepare the terms of reference (TOR) for the compliance review, request clearance of the TOR by the Board Compliance Review Committee, and

¹³ "The purpose of the compliance review phase is to determine independently whether requesting parties suffered or might suffer direct and material harm caused by an ADB-assisted project and if so, whether this harm was caused or might be caused because ADB did not comply with its operational policies and procedures" (CRP, 2010).

¹⁴ If the complaint was determined to be ineligible because the complainant had not brought up the issue with the operations department, the complaint is sent to the operations department.

send the TOR to the Board and the Management for reference. Once cleared by the Board Compliance Review Committee, the CRP initiates the review. The CRP conducts desk reviews, meetings, and site visits, consulting all stakeholders.¹⁵

The fifth step in the compliance review is making a draft report. The CRP makes a draft report based on the findings of the compliance review and sends it to the complainants, borrower, and Management for responses. The time period allowed for the responses is 45 days from the issuance of the draft report. The Board Compliance Review Committee also reviews the draft report.

The sixth step in the compliance review is making the Final Report. The responses complainants, borrower, and Management are received by the CRP to which it revises the report to issue the Final Report. The report is submitted to the Board of Directors through the Board Compliance Review Committee.

The seventh step in the compliance review is the Board of Directors' consideration of the Final Report. The Board of Directors needs to review the Final Report within 21 days. After the Board's consideration, the OCRP needs to inform the complainants and borrower of the Final Report within 7 days.

The eighth step in the compliance review is taking note of the Management's remedial actions. If the Final Report of the CRP finds that noncompliance on the part of the ADB caused direct and material harm on the complainants, the Management needs to proposed remedial actions with agreement of the borrower.¹⁶ Then the CRP needs to comment on the proposed remedial actions within 5 days. Then the Management needs to

¹⁵ The time for the review is not limited.

¹⁶ The time period allowed for this step is vague wherein it says that has to occur in about 60 days after the Board's consideration of the Final Report.

submit a report on proposed remedial actions, with the CRP comments, to the Board.

The ninth step of the compliance review is the Board decision. After the receipt of the report of proposed remedial actions, the Board needs to approve on the report within 21 days.

The last step in the compliance review is monitoring and conclusion. This step generally does not take longer than 3 years. In this last step, the CRP needs to monitor the remedial actions and report annually unless specified otherwise. The reports are finalized with the Board Compliance Review Committee. After the reports are finalized, they are made available to the complainants, borrower, Board, Management, staff, and public.

Process of the Problem Solving Function¹⁷

The first step of the problem solving function is determining eligibility. The time period allowed for this step is 21 days from the receipt of the complaint. The OSPF consults with the complainants, borrower, and operations department concerned to determine the eligibility of the complaint. The Special Project Facilitator reports to the President, and also sends copies to the vice-president, the operations department concerned, and the complaint-receiving officer, of the decision made regarding the complaint. Then the complainants are informed of the decision.¹⁸

¹⁷ This section is based on the problem solving process explained in the ADB website. The exact source can be found in the references.

¹⁸ Just as the CRP, the identities of the complainants can be requested to be confidential. Furthermore, If the complaint was determined to be ineligible because the complainant had not brought up the issue with the operations department, the complaint is sent to the operations department

The second step of the problem solving function is the review and assessment of eligible complaint. The Special Project Facilitator conducts site visits, interviews, and meetings with related parties including the operations department. The OSPF can act freely in terms of its review and assessment of the complaint. A report of the results of the assessment is made to the President, with a copy also sent to the vice-president. The OSPF then sends the results to the stakeholders for their comments. At this step, the Special Project Facilitator can decide end the process in cases where efforts will mostly be futile.¹⁹

The third step of the problem solving function is problem solving. The OSPF can hold consultative dialogues, information sharing sessions, mediation mechanism, and other methods among related parties to solve the issues at hand. In the process of the function, remedial actions can be agreed upon. However, changes in the project design require approval.²⁰ Regardless of the results of this step, a report summarizing the issue at hand, the efforts made, and the results, is made to the President, with a copy also sent to the vice-president, the operations department, complainants, borrower, Compliance Review Panel, and the Board of Director. The process ends at this step if no agreement is reached, or a party decides to disengage.²¹

The fourth step of the problem solving function is implementation and monitoring. The OSPF monitors the implementation of remedial actions as agreed by the

¹⁹ This process takes about 120 days.

²⁰ Changes need to be made in compliance with applicable ADB procedures. Furthermore, the borrower also needs to agree to the remedy.

²¹ Just as the CRP review, there is no time limit on the problem solving step. Furthermore, the complainants can request compliance review to be simultaneously carried out at the end of this step.

parties. Consultations with the parties are also included in the monitoring process. Then the results of monitoring are reported to the complainants, the borrower, the operations department, the President, and the Board of Directors.

The last step of the problem solving function is conclusion of the problem solving process. The OSPF makes a final report and submits it to the complainants, the borrower, the operations department, the CRP, the Board Compliance Review Committee, the President, and the Board of Directors.

V. Review of Cases

Determination of Eligibility

The Accountability Mechanism starts with the determination of eligibility and therefore will be reviewed first. The researcher compiled the number of ineligible case per year, the percentage of the aforementioned, and the corresponding reason for such determination, according to the Compliance Review Panel and the Office of the Special Project Facilitator.

In the case of the Compliance Review Panel, two cases out of twelve cases, seventeen percent of all cases were determined to be ineligible for review.²² There is a clear contrast in the number of complaints filed and the percentage of complaints that were determined ineligible. Furthermore, one of two cases was determined to be ineligible on the note that the complaint was attempted to reopen a decided case with no new evidence. In the review of determination of eligibility in the Compliance Review Panel, the researcher observed that there is no sign of bias.

In the case of the Office of the Special Project Facilitator, thirty nine cases out of fifty seven cases, sixty eight percent of all cases were determined to be ineligible for review. There is a clear contrast with the Compliance Review Panel. While the previous had a high passing rate for review, this function showed a high failing rate. Due to the various counts of ineligible complaints, the researcher assessed the reasons for such

²² See Table 1

determinations and identified six main reasons.²³ The most frequent reason for ineligibility was that complaint was not brought up to the Operations Department first for settlement or recourse. This comprised twenty one out of thirty nine cases, more than half of all ineligible cases. The second most frequent, six out of thirty nine cases, did not state a reason for the determination of eligibility. This second most frequent type of cases presents room for bias in the process. The decision on the issue is not transparent where the reasoning for the decision and advice not made for the consideration of said complaint.²⁴ The third most frequent, five out of thirty nine cases, determined

Table 1. Ineligible Complaints of the Compliance Review Panel by Year

Year	Ineligible / Total²⁵	Percentage²⁶	Reason(s)
2004	1 / 2	50%	Could not verify if harm was caused by the project
2005	0 / 0	-	-
2006	0 / 0	-	-
2007	0 / 0	-	-
2008	0 / 0	-	-
2009	0 / 1	50%	-
2010	0 / 0	-	-
2011	0 / 2	0%	-
2012	0 / 2	0%	-
2013	0 / 1	0%	-
2014	0 / 0	-	-
2015	1 / 1	100%	No new evidence was presented to a review that has already been done in 2012
2016	0 / 3	0%	-
Total	2 / 12	17%	

²³ See Table 2

²⁴ Which fails to satisfy the C7 section of the GAP guidelines

²⁵ Number of ineligible complaints out of total number of filed complaints

²⁶ Percentage of ineligible complaints out of total number of filed complaints (rounded up to ones)

ineligibility on the account that the complaints were already being handled by the Operations Department or the complainants' government. These three types comprise eighty two percent of all cases. The other reasons are cases wherein the complaint was determined to be filed prematurely or filed too late (eight percent), cases wherein the issue of the complaint was determined to be out of mandate (procurement related matters; five percent), and cases wherein there were no direct harm done or complainants were not materially and adversely affected by the project (five percent).

In the review for bias in the determination of eligibility in the CRP, the researcher found that there was no sign of bias. Although seventeen percent of the CRP complaints had been determined ineligible, the reasons for the denial of review had substantial basis. In the case of the OSPF, a significant number of complaints had questionable reasons for ineligibility. Fifteen percent of the OSPF complaints did not have a reason stated for ineligibility. This makes the process susceptible to suspicion for bias in the determination. Furthermore, more than half of the OSPF complaints were denied because the OSPF determined that the complainants did not attempt to settle the issue with the Operations Department. The percentage of this reason for ineligibility raises questions of decision making bias. Not only does the instructions for filing a complaint clearly say that there must have been efforts with good faith to address problems with the Operations Department, both letter and form provided for by the ADB provide spaces to write down the instances where resolution with Operations Department was sought for.

Table 2. Ineligible Complaints of the Office of the Special Project Facilitator by Year

Year	Ineligible / Total ²⁷	Percentage ²⁸	Reason(s) ²⁹					
			OD First	OD Process	Time	Issue	No Harm	No Reason
2004	1 / 3	33%	1	-	-	-	-	-
2005	0 / 1	0%	-	-	-	-	-	-
2006	5 / 6	83%	1	1	2	1	-	-
2007	1 / 2	50%	1	-	-	-	-	-
2008	0 / 0	-	-	-	-	-	-	-
2009	9 / 13	69%	7	1	-	-	1	-
2010	5 / 7	71%	2	-	1	1	1	-
2011	4 / 7	57%	4	-	-	-	-	-
2012	2 / 2	100%	2	-	-	-	-	-
2013	6 / 6	100%	1	3	-	-	-	2
2014	1 / 3	33%	1	-	-	-	-	-
2015	1 / 1	100%	1	-	-	-	-	-
2016	5 / 6	83%	1	-	-	-	-	4
Total	40 / 57	70%	22(55%)	5(12.5%)	3(7.5%)	2(5%)	2(5%)	6(15%)

²⁷ Number of ineligible complaints out of total number of filed complaints

²⁸ Percentage of ineligible complaints out of total number of filed complaints (rounded up to ones)

²⁹ These are the reasons for ineligibility; “OD First” refers to the cases wherein complainants have not brought up the issue to the Operations Department first; “OD Process” refers to the cases wherein complaints are being handled by the Operations Department or the government; “Time” refers to the cases wherein the complaint was determined to be filed prematurely or filed too late; “Issue” refers to the cases wherein the issue of the complaint was determined to be out of mandate (procurement related matters); “No Harm” refers to the cases wherein there were no direct harm done or complainants were not materially and adversely affected by the project; “No reason” refers to cases where no reason was stated.

Cases of the Compliance Review Panel

In this section, the cases of the Compliance Review Panel will be reviewed for bias in their assessment of the complaint and the rendering of decision and action plan.

Case 1: Sri Lanka: Southern Transport Development Project (STDP) (2004/1)³⁰

This complaint was filed by the Joint Organization of the Affected Communities of the Colombo-Matara Highway and received on the 2nd of December 2004. Among other issues, this case was concerned with compensation, Environmental Impact Assessment (EIA), Social Impact Assessment (SIA), and resettlement. In the CRP's Final Report, they acknowledged seven lapses of compliance in their policies and operational procedures. The CRP acknowledged that the Environmental Impact Assessment (EIA) done in 1999 has been inadequate; that gender analysis has not been done despite alleging significant impact on women; that some monitoring and evaluation procedures has not been undertaken; that the ADB management has failed to restore compliance in the project for a significant amount of time; that the project failed to incorporate social dimensions due to the weak information sharing system and income restoration program; that the project has had significant shift without public participation; and that some of such shifts in the project were done despite requiring a review by the operations department.³¹ Afterwards CRP recommended to the management for the review of all

³⁰ Case number as registered in the Compliance Review Panel

³¹ Operations Manual (OM) Section 20: Environmental Considerations in Bank Operations (1997); OM Section 21: Gender and Development in Bank Operations (1997); OM Section 22: Benefit Monitoring and Evaluation (1997); OM Section 40: Formulation and Implementation of Loan Covenants (1995); OM Section 47: Incorporation of Social Dimensions in Bank Operations (1997); OM Section 506. Involuntary Resettlement (1997); Project Administration Instruction

issues raised, the development of additional guidelines on important policies and procedures, the requirement of payment before relocation, the immediate provision of utilities and infrastructure to resettlement sites, and the assistance in monitoring and assessment.

In the review of the Final Report, the CRP makes clear the issues at hand and fairly acknowledges the problems that have and had occurred. The complaint seems to be taken into care consideration, delving into all points raised by the complainants. In the researcher's review, the assessment and the acknowledgment of the problem, and the recommendation for remedies should have satisfied the complainants' requests. However, in response to the Report, the complainants expressed strong dissatisfaction with the recommendations and the remedies made available.³² Despite expressing satisfaction in the assessment and the acknowledgment of the problem, the complainants pointed out that the CRP did not recommend thorough environmental and social impact assessments for the project, and argued that this is a major omission given that the assessments are required by ADB policy. They also expressed deep concerns for the consequences from the project, on the part of the people residing in Sri Lanka. Another issue raised by the complainants was the people in ADB who have provide wrong information and false statements have not been called to take account for the massive delay in inspection. According to the complainants, the issue should have been inspected in 2002 when the initial complaint was made. The false statements given on the part of the ADB management prolonged the settlement of the issue by two years. These two issues were

(PAI) No. 5.04: Change in Project Scope or Implementation Arrangements (2001)

³² The comments made by the complainants were on a draft of the report. The comments were attached on the Final Report.

critical in the dissatisfaction of the complainants as to the results of the compliance review.

Case 2: People's Republic of China: Fuzhou Environmental Improvement Project (2009/1)

This complaint was filed by Mr. Wang Jie Quan and Mr. Xu Qi Long and received on the 3rd of June 2009. This case was mainly concerned with resettlement in relation to the Involuntary Resettlement Policy (IRP) of the ADB. Specifically, four points were reviewed by the CRP. The CRP examined whether compensation for residents without legal title was sufficient, rehabilitation measures were provided for people with income loss, information were properly disseminated, and grievances were properly responded to by the ADB. During the review, a site visit was deemed necessary but was denied on the part of the government of the People's Republic of China (PRC). After the complaint was filed, the PRC changed the project design to exclude the resettlement of the complainants and thus argued that the site visit was unnecessary. The CRP, on the other hand, argued that the complaint was filed before the change in the project and therefore still needed to make a site visit to finish the review. Despite CRP's argument, the PRC denied a site visit, and the CRP argued that they could not disclose their review because it is incomplete.³³ They did, however, make a recommendation to

³³ The argument was that they could not verify if there was harm done, and whether the harm was caused by the in-compliance of the ADB to its own policies and procedures. They argue that site visits are necessary to “provide both the requesting parties and the ADB with a fair hearing, verify requesting parties’ claims of actual or potential harm, validate CRP findings from desk reviews and interviews with ADB staff, verify ADB compliance using sound methodology and the best evidence available, and ensure ADB accountability to all stakeholders, especially those directly affected by ADB projects and for whom the CRP is the last recourse.”

the Board of Directors to revise the Accountability Mechanism Policy to avoid uncertain circumstances and negative implications such as this case.³⁴

Needless to say, the complainants expressed dissatisfaction with the process due to the lack of a presentation of findings and recourse. Furthermore, in the comments of the complainants to the Report, they claim that local construction workers confirmed that the constructions were still being done under the original plan and that construction site have come within close proximity to their residential area which places their houses still at uncertain risk. To this concern, there was no mention of action taken.

Case 3: Philippines: Visayas Base-Load Power Project (2011/1)

This complaint was filed by some project affected people who wished to remain anonymous and received on the 25th of May 2011. Among other issues, this case was concerned with consultation, Environmental Impact Assessment (EIA), and information. The complainants expressed concern over the emissions of carbon dioxide (CO₂), Sulfur dioxide (SO₂), and nitrogen dioxide (NO₂), the spillage of coal during transport, and the seepage of harmful elements from the coal ash dumpsite. These were issues that would have detrimental impact to the health of the community and the environment. In the complaint, they also pointed out that the plant produced 4 times more coal combustion waste compared to other coal-burning plants. The complainants requested comprehensive reviews of the EIA and the coal ash disposal site while disclosing of all project-related documents. They also requested that the ADB hold funds until such actions are taken and

³⁴ To cite, the CRP argues that “the inability to conduct site visits adversely affects and undermines the effectiveness and credibility of the Accountability Mechanism and confidence in the commitment of ADB to transparency and policy compliance.”

withdraw funds in case the project is determined to have been poorly designed and implemented.

In their review, the CRP finds that the ADB failed to require an updated EIA;³⁵ that ash management had not been conducted with due diligence; that an environmental management plan (EMP) was not requested for the disposal sites;³⁶ that the ADB failed to fully consult the community and inform them about the potential impacts and preventive and safety measures;³⁷ that significant changes in the summary environmental impact assessment (SEIA) was not disclosed; and that rigorous due diligence was not exercised in the completion of its environmental and social safeguards as required.³⁸

In the CRP's Final Report, they recommended that comprehensive studies be undertaken on air dispersion modeling and on ash utilization, and action plans to be developed to mitigate the concerns over public health and pollution;³⁹ that measures be taken to facilitate transparent and inclusive communication; and that a community outreach program be implemented to prevent negative impact on public health and the environment.

Despite the CRP's acknowledgement of the problem and the recourse recommended thereafter, the complainants expressed dissatisfaction with the review

³⁵ Including a revision of the ambient air dispersion modeling

³⁶ Environment Policy (2002); Operations Manual F1: Environmental Considerations in ADB Operations (2006)

³⁷ Operations Manual L3: on Public Consultation, Information Disclosure (2008); Operations Manual C3: Incorporation of Social Dimensions into ADB Operations (2007)

³⁸ Energy Policy (2009)

³⁹ The air dispersion modeling study was suggested to monitor air emissions to check air quality. The ash disposal site study was suggested to prevent seepage and promote utilization.

process. In their response to the Report, they argue that the CRP were biased toward the ADB by justifying the problems acknowledged to be mere failure to exercise due diligence in special circumstances that warranted significant time constraints. The delivery of the findings in the report was deemed to promote the understanding of the dilemma ADB faced with the execution of the project. Mentions of the project funding scheme were also rebutted, where the CRP claimed that the problems arose because the ADB became involved after the project design was complete, where the complainants argue that thorough environmental and social impact assessment should have been carried out prior the approval of the loan.

**Case 4: Kyrgyz Republic: CAREC Transport Corridor 1 (Bishkek-Torugart Road)
Project 1 (2011/2)**

This complaint was filed by some project affected people who wished to remain anonymous and received on the 23rd of May 2011. The complainants were represented by the NGO forum on ADB. This case was mainly concerned with compensation. The road improvement project did not have involuntary resettlement plans as no such effect was foreseen in its execution. However, the complainants sought compensation for the shops (originally bus stops), fences, and trees that were demolished and removed for the project.⁴⁰ In the process, ADB sought to have the government compensate the complainants according to the Involuntary Resettlement Policy (1995). However, during negotiations with the government, the ADB came into a compensation agreement with the Ministry of Transport and Communications (MOTC) which provided construction

⁴⁰ The project affected 3 shops, 1.75 kilometers of fences, and 211 trees.

materials for the shops and assistance for the relocation of the fences.

In the CRP's review, they found that ADB did not comply with the Involuntary Resettlement Policy (1995) and erred when it entered into the compensation agreement with the MOTC; that the Policy on the Incorporation of Social Dimensions into ADB Operations (2007) was also not complied with; and that ADB failed to exercise due diligence in the supervision of the project implementation. In response, the CRP recommended that the violated policies be upheld in the project and continuously monitored; that the current involuntary resettlement be settled and monitoring be done for future involuntary settlement impact; and that ADB project resettlement specialists be included in the early stages of road projects such as this case.

In the response to the Report, the NGO Forum on ADB expressed relative satisfaction with the process with minor issues. These issues deal with some reiteration of the facts of the case and some other subsistence issues such as assistance in acquiring business permits, replaying microloan interest, and acceptance in loan repayment programs.

Case 5: Indonesia: Integrated Citarum Water Resources Management Investment Program (2012/1)

This complaint was filed by some project affected people who wished to remain anonymous and received on the 30th of January 2012. The complainants were represented by People's Coalition for the Rights to Water.⁴¹ This case was mainly concerned with compensation and resettlement. The complainants claimed that they had

⁴¹ "Koalisi Rakyat untuk Hak Atas Air (KRuHa)" in the vernacular

been evicted without compensation.⁴² They demanded that they receive fair compensation, livelihood restoration support, access to information, and opportunities for consultation.

In the CRP's review, they found that assessments could have been timelier and better assurance for compensation could have been provided for. They also found that the resettlement plan the project had did not adequately compensate for property and livelihood losses. Furthermore, the CRP found that information was not properly disseminated and consultations were not ensured. At the point of the Final Report, the resettlement plan was being revised to accommodate the assessed shortcomings, which made the CRP reserve additional action. In their recommendations, CRP asserted that the ADB needs to ensure due diligence and dialogue with stakeholders; that the revised resettlement plan take into consideration the position of the project affected people; and that ADB assist the government with staff resources for resettlement issues to keep the project in line with the proposed timeframe.

In the response to the Report, the complainants expressed relative satisfaction with the process with minor issues.⁴³ The issues were that the CRP had not firmly confirmed the violations as violations of ADB's policies; that the CRP did not make recommendations for the especially for the people who were affected by the problem; that the project implementer was not held accountable; and that the recommendations made in the Report was not stronger in asserting stricter policy compliance.

⁴² The complainants claimed that under the resettlement plan approved in 2008, they were deemed eligible for compensation.

⁴³ Despite the resatisfaction of the review process, the complainants were dissatisfied with how the ADB failed to exercise due diligence prior to the initiation of the project.

Case 6: Cambodia: Rehabilitation of the Railway in Cambodia Project (2012/2)

This complaint was filed by several affected households from five resettlement sites and received on the 28th of August 2012.⁴⁴ They complainants were represented by Equitable Cambodia (EC) and Inclusive Development International (IDI). This case was concerned with consultation, information, and resettlement. Aside from expressing concern over the main issues, the complainants also expressed concern over threats of unlawful land acquisition and human right violations.

In the CRP's review, they found that there were major design flaws in the resettlement plan; that there were inadequate requirements for consultation, grievance redress mechanisms, capacity building, and resettlement site facilities; that the project failed to take into consideration inflation in their compensation;⁴⁵ and that a minimum standard for housing was not provide for. These shortcomings and the delay in the redress of the issues caused significant income loss in the area. In the CRP's Final Report, they recommended that an immediate compensation deficit payment scheme be executed; that grievance redress mechanisms resettlement site facilities be improved; and capacity-building program be developed for the restoration of livelihoods and living standards in the area.

In the response to the Report, the complainants express gratitude for the confirmation of numerous points in the facts of the case. However, the length of the points in disagreement, together with the severity of several issues, compels the researcher to classify that the complainants were dissatisfied with the review with major

⁴⁴ The settlement sites were from Battambang, Phnom Penh, Poipet, Pursat, and Sihanoukville.

⁴⁵ 2006 rates in the original resettlement plan were utilized in the compensations made in 2010 ~ 2011.

issues. These issues were that 26 households were stuck in cramp housing with no acceptable alternative; that the proposed compensation deficit scheme gave too much discretion on the part of the ADB Management;⁴⁶ that the CRP overstated the role of the OSPF in the resolution of the problems;⁴⁷ that 137 households were still living in precarious state were they were not confirmed to their right of residence or right to be resettled after 5 years in accordance to the ADB Resettlement Policy; that the CRP claimed that ADB staff encouraged the affected people to utilize the OSPF when that was not the case; that the CRP claimed that there was no atmosphere of intimidation or threat whilst most of the 140 people present at consultation meeting on the 17th of December 2013 raised their hands at the question on whether they have experienced threat or intimidation during the resettlement process; that NGOs experienced not only outright dismissal of recommendations by the ADB despite the report's positive opinion on NGO participation, but also were threatened for closure by the government which seems to have been at a request by an ADB consultant; that the CRP and the ADB denies the liability in the death of two children at the water pond at the Battambang area despite the failure to provide alternative potable water sources according to ADB's Involuntary Resettlement Policy; and much more.

⁴⁶ The complainants asserted that given their experience with the ADB Management, the scheme will not likely follow through without a detailed plan proposed by the CRP.

⁴⁷ While the CRP asserted that the OSPF played a significant role in restoring the livelihoods and living standards of the project affected people, the complainants asserted otherwise saying that the OSPF merely offered modest compensation adjustments to some project affected people which was deemed less than sufficient by many complainants.

Case 7: India: Mundra Ultra Mega Power Project (2013/1)

This complaint was filed by several complainants separately and received on the 17th of October 2013.⁴⁸ This case was concerned with consultation, information, Environmental Impact Assessment (EIA), and Social Impact Assessment (SIA). The complainants expressed concern over inadequate information dissemination, inadequate opportunities for consultation, flawed environmental and social impact assessments, loss of livelihoods, negative impact on public health, and impact on horticulture and ground water.

In the CRP's review, they found that the ADB failed to conduct adequate and comprehensive consultations with fisherfolk to be the most importance shortcoming of the project. The problem derived from a blatantly erroneous field assessment wherein it claims that there is no fishing activities done in the area of concern. Furthermore, ADB also asserted through two marine impact assessments that there would be minimal, non-consequential impact on fisheries. It was the view of the CRP that consultations should have taken place to better assess the impacts of the project.⁴⁹ The CRP also found that discharge from the plant, through the varying temperature of the water waste and possible chemical pollution,⁵⁰ has cause detrimental impact on the marine environment. This impact moved on directly to the people who fish near the shore in the channel area. Furthermore, continuous violations of prescribed air standards were found in the review, which the ADB has exercised due diligence despite causing harm in a specific area.

⁴⁸ Gajendrasinh Bhimaji Jadeja and Harun Salemamad Kara filed as individual complainants while a group of complainants were represented by Bharat Patel.

⁴⁹ Specifically for thermal and chemical pollution related operational policies and procedures

⁵⁰ Also includes changes in salinity

In the conclusion, the CRP recommended that an evidence base be established for the CRP to review future cases better; that stakeholders be assessed and consulted comprehensively in the early stages of a project; that ADB staff assist borrowers to adhere to ADB operational policies and procedures; that impact assessments be rigorously made; and that situations involving conflict of interests among staff be avoided. The Report did not recommend actions to resolve the existing problem regarding the case.

In the response to the Report, the complainants express gratitude for the confirmation of numerous points in the facts of the case. However, not only does the CRP not provide recommendations to the remedy the problems caused, but also fails to cover major points of the complaint. The researcher, therefore, classified the complainants to be dissatisfied with the review. The complainants expressed confusion and disappointment in regard to the lack of concrete scientific data on environmental impact assertions, to the neglect on the review of the impact of the intake channel connected to the plant, and to the lack of accountability to the staff of ADB who caused serious lapses in judgment.

Case 8: Georgia: MFF Sustainable Urban Transport Investment Program – Tranche 3 (2016/1)

This complaint consolidated two complaints filed by the residents of two buildings near the project area and received on the 14th of March 2016. This case was mainly concerned with consultation, resettlement. The complainants expressed concern for their physical environment and quality of life despite not being included in the scope

of the resettlement or displacement. They were concerned with noise and air pollution due to the road construction and heavy traffic as the new road opens up. Furthermore, they expressed concern for their residential building being susceptible to damage due to deterioration and proximity to the construction sites. They added that special attention needs to be given because the buildings were constructed for and actually house a significant number of visually impaired people.

In the CRP's review, it was found that the ADB has slightly exceed maximum noise level standards; that vibrations from the construction may damage the building as to cause debris to fall off; that the project failed to assess the social impact for the visually impaired; that the ADB failed to conduct a baseline survey for the environmental impact of the project; and that the consultations conducted were not adequately conducted considering the needs of vulnerable groups.

In their conclusion, the CRP recommended that ADB staff need to guide borrowers to comply with ADB operational policies and procedures; that impact assessments be adequately reviewed; that classification of projects be stricter especially when it comes to environmental categories; and that field visits be conducted when dealing with cases with vulnerable and disadvantaged people. The Report did not recommend actions to resolve the existing problem regarding the case.

In the response to the Report, the complainants did not express satisfaction or dissatisfaction with the review. The response dealt with the questions on how the problem would be settled. The questions were minor where the facts of the case and the acknowledgement of the problem was not a problem. The questions were on the standards of the vibration survey, the reasoning behind the assertions regarding the

vibration; and on the performance of a concrete test. The Final Reports of the CRP did not recommend actions to resolve the problem clarified in the case starting from last case in 2013. From the consideration of the review, the researcher classified the complainants were satisfied with minor issues.

Case 9: Samoa: Promoting Economic Use of Customary Land and Samoa AgriBusiness Support Project (2016/2)

This case could not be assessed because the review process was not finished.

Case 10: Georgia: Sustainable Urban Transport Investment Program - Tranche 3 (2016/3)

This case could not be assessed because the review process was not finished.

Table 3. Summary of Eligible Complaints of the Compliance Review Panel

Eligible complaints received and registered by the Compliance Review Panel (CRP)				
#	Case	Complaint / Name of Project	Issues	Satisfaction (Complainant)
1	2004/1	Sri Lanka: Southern Transport Development Project (STDP)	● Compensation ● Environmental Impact Assessment (EIA) ● Resettlement ● Social Impact Assessment (SIA)	Dissatisfied – mentions CRP bias for the ADB in the review of EIA and SIA; individuals in the ADB responsible for the problem are not held accountable
2	2009/1	People's Republic of China: Fuzhou Environmental Improvement Project	● Resettlement	Dissatisfied – government opposition, denied site visit, lack of recourse
3	2011/1	Philippines: Visayas Base-Load Power Project	● Consultation ● Environmental Impact Assessment (EIA) ● Information	Dissatisfied – mentions CRP bias for the ADB in providing justification for non-compliance
4	2011/2	Kyrgyz Republic: CAREC Transport Corridor 1 (Bishkek-Torugart Road) Project 1	● Compensation	Satisfied with minor issues (NGO Forum)
5	2012/1	Indonesia: Integrated Citaram Water Resources Management Investment Program	● Compensation ● Resettlement	Satisfied with minor issues – CRP has not firmly stated the non-compliance as violation of ADB's policies in their publication
6	2012/2	Cambodia: Rehabilitation of the Railway in Cambodia Project	● Consultation ● Information ● Resettlement	Dissatisfied – major issues, overstatement of OSPF role, false reporting, threats for closure

Eligible complaints received and registered by the Compliance Review Panel (CRP)					
#	Case	Complaint / Name of Project	Issues	Satisfaction (Complainant)	
7	2013/1	India: Mundra Ultra Mega Power Project	● Consultation ● Information ● Environmental Impact Assessment (EIA) ● Social Impact Assessment (SIA)	Dissatisfied – individuals in the ADB responsible for the problem are not held accountable, shift in the recommendation pattern (2013 onwards)	
8	2016/1	Georgia: MFF Sustainable Urban Transport Investment Program – Tranche 3	● Compensation ● Resettlement	Satisfied with minor issues	
9	2016/2	Samoa: Promoting Economic Use of Customary Land and Samoa AgriBusiness Support Project		Process not finished	
10	2016/3	Georgia: Sustainable Urban Transport Investment Program - Tranche 3		Process not finished	

Cases of the Office of the Special Project Facilitator

In this section, the cases of the Office of the Special Project Facilitator will be reviewed for bias in their execution of the problem solving function.

Case 1: Nepal: Melamchi Water Supply Project (MWSP) (1/2004)⁵¹

This complaint was filed by four project affected people and received on the 3rd of May 2004. This case was concerned with agriculture, compensation, Environmental Impact Assessment (EIA), forestry, indigenous peoples, information, land acquisition, resettlement, and the Social Uplift Program. The complainants claimed that agriculture and forestry have been seriously affected by the project; that impact assessments were not carried out on purpose; that the EIA had flaws and shortcomings; that the rights of indigenous people in the area was denied; that inadequate amount of time was allowed for the resettlement; and that the Social Uplift Program poorly design due to lack of consultations. The complainants sought to resolve the issue through project design changes, project documents disclosure, and solving inadequate compensation. The OSPF provided documents requested through the consultation phrase. As to compensation, the complainants deemed the compensation fair after clarifications to how the amounts were derived. On the most important point, the complainants' attempt to achieve project design changes failed as the OSPF argued that such actions are out of its mandate. In the Final Report of the OSPF, it states that the complainants were dissatisfied with the results and withdrew from the problem solving function to avail for compliance review.⁵²

⁵¹ Case number as registered in the Office of the Special Project Facilitator

⁵² This is one of the two ineligible cases of the CRP (2004-2016).

The disappointment contained in the Final Report was confirmed by the NGO Forum on ADB (2006). The complainants brought various issues of non-compliance with ADB policies before the OSPF but were reviewed otherwise. The arguments were deemed irrelevant to the consultation process, despite efforts on the part of the complainants to have them resolved. It was reported by the NGO that the consultation phase was “criticized for its inadequate effort” in the provision of redress. Problematic situations which arose from “huge cost overrun and delays due to worsening security situation” were not mitigated.

Case 2: Sri Lanka: Southern Transport Development Project (STDP) (2/2004)

This complaint was filed by the Joint Organization of the Affected Communities on Colombo-Matara Highway and was received on the 9th of June 2004. This case was concerned with compensation, Environmental Impact Assessment (EIA), Social Impact Assessment (SIA), and resettlement. The complainants sought to resolve the issues with project design changes. The core issue of the complaint was the change in the trace of the project during the preliminary and detailed design stages. Other issues were harsh resettlement practices; environmental degradation; lack of participation; and lack of communication and information. The complainants requested that the project be suspended and that an alternative trace be made.

In the review, the OSPF found that it infeasible to find an alternative trace that would lead to less damage, both for the PAPs and the wetlands affected; that the suspension of the project would lead to more complications in the consultative process; that the complainants did not represent resettled PAPs; that PAP participation in the

project had been limited; that there had been inadequate methods of information dissemination which have caused a lasting impression on the PAPs despite efforts for disclosure; that summaries of the EIA and EMP in the local language needed to be disseminated; that none of the five temples mentioned in the complaint would be physically damaged; and that the relations between the project and the affected people in terms of direct material harm could not be established.

In the Final Report, it is stated that the hired facilitator was not able to settle the design change issue related to the trace of the project. The OSPF claim that they have exhausted efforts to mediate and that judicial settlement was deemed to be the only remaining recourse. Mutual mistrust between the stakeholders which has lead to disagreements, one after another, forced the OSPF to conclude that their options were limited.

This is another case wherein the NGO Forum on ADB (2006) criticized the ADB AM for its inadequate effort to solve the claims. Hemantha Withanage wrote that this case was initiated under the old Inspection Function and later accepted by the OSPF in 2004.⁵³ He wrote that the mediator, who was recruited by the OSPF, failed to mediate properly between the PAPs and other stakeholders due to his “wrong approach.” This, in his opinion, is the reason for the failure of the process during the mediation stage. The mediator, along with the former Special Project Facilitator (SPF) and other ADB officials, was criticized for partiality for other stakeholders aside from the PAPs in the process. He claimed that they have “displayed partiality and prejudice for STDPA.” The former Special

⁵³ Hemantha Withanage was the Executive Director at the Centre for Environmental Justice/Friends of the Earth Sri Lanka; in *Is ADB Accountable* (2011).

Project Facilitator was criticized for bias in the engagements with the NGO and complaints.

Case 3: Indonesia: Community Empowerment for Rural Development Project (1/2005)

This complaint was filed by several NGOs and PAPs and was received on the 21st of February 2005.⁵⁴ This case was concerned with village infrastructure, community participation, and information sharing. The complainants sought to resolve their loss of income and time, their decline in agricultural production,⁵⁵ and the conflict caused between the villages in the area. In the complaint, the NGOs and the villagers argued that the project had built some infrastructure which could not be utilized due to the lack of other related infrastructure (which were going to be built later) and capacity building, and thus had led to harm in the villages of the area. They claimed that the lack of village consultations and the lack of information about the project and its individual components have added to the problem that the villagers were facing. The lack of additional infrastructure and information on the project caused adverse consequences in the area. In the process of the consultations, the stakeholders agreed that capacity building for should have been planned and executed before the infrastructure was built.⁵⁶ In the Final Report, it stated that through consultations and fact-finding, local resolutions led to satisfaction

⁵⁴ The NGOs were Yayasan Cakrawala Hijau Indonesia, Lembaga Kajian Keislaman & Kemasyarakatan, and Yayasan Duta Awam; complainants were also joined from five villages (Kiram, Mandiangin Barat, Handil Baru, Handil Negara, and Kali Besar).

⁵⁵ The decline was reported to be caused by transportation problems.

⁵⁶ The stakeholders agreed that decentralized development planning should have been done.

of the complainants.

The report was corroborated by the NGO Forum on ADB (2006) wherein they stated that local initiatives, with the assistance of the OSPF, resulted to an agreement between the PAPs and other stakeholders in the Community Empowerment for Rural Development (CERD) project. It was expressed that though the agreement took quite a long time to achieve, the much awaited results were yielded in late September 2005. Through the assistance of the OSPF, the complainants felt that a solution would be provided for by the ADB and the government.

Case 4: Pakistan: National Highway Development Sector Investment Program (4/2006)

This complaint was filed by the Committee of Affectees of Muzaffargarh Bypass and was received on the 9th of September 2006.⁵⁷ This case was concerned with land acquisition, compensation, resettlement and information. The complainants sought to resolve issues regarding information, consultation, and compensation. The concerns were that the bypass would cause the displacement of the PAPs; that there was a lack of transparency in the process of land acquisition and resettlement; and that full compensation was not guaranteed for the losses the complainants have incurred.

In the Final Report, the OSPF assessed the situation and found that proper information dissemination and consultations were the methods to solving the problem at hand.⁵⁸ They carried out the process and was able mediate an agreement between the

⁵⁷ The committee was comprised of 53 members.

⁵⁸ Proper information is described to be appropriate and systematic.

stakeholders. The report stated that the information sought for by complainant was provided; that the compensation issues were agreed upon; and that the construction of extra infrastructure was assured.⁵⁹ In detail, the agreement held that the updated list of PAP was to be released; that a revised resettlement plan would be released;⁶⁰ that preliminary compensation rates and the explanations as to how they were derived would be disclosed; that applications for higher rates would be accepted and be viable for reconsideration; and that two underpasses would be constructed.

Case 5: Cambodia: Phnom Penh to Ho Chi Minh City Highway Project (2/2007)

This complaint was filed by groups from Krang Khok and Steung Slot in the Prey Veng province and was received on the 30th of July 2007.⁶¹ This case was concerned with compensation, land titling, and livelihood. The complainants sought to resolve the inadequate compensation, the release of funding, the transfer of resettlement land title, and the initiation of a project for job creation.⁶²

The NGO Forum on ADB (2008) corroborated the problems that were reported to be caused by the project through a survey done among the complainants.⁶³ The results showed that the lack of funds for new land and houses, the changes in the initial project

⁵⁹ The additional infrastructure was required to secure safe passage near the to-be constructed highway.

⁶⁰ This was to be release before the last round of consultations so that the PAPs could consult the other stakeholders on the issue during the problem solving process.

⁶¹ The groups had a total of 63 people affected by the project.

⁶² The complainants argued that the livelihoods were lost and became burdened with debt due to the project.

⁶³ The survey was conducted by CDCam to find out the problems encountered by the PAPs. It surveyed the 63 families affected by the project.

design and the vague compensation calculation method were the most common problems the complainants were facing. Regarding compensation, the complainants felt that the amount of compensation was inadequate because it was not enough to purchase land and construct new houses. Furthermore, they felt that compensation calculations were partial to a few residents. Various problems existed and the NGO Forum on ADB claimed that the problems have not been settled for “ten years after the project started in 1999.”

In the Final Report, it was stated that the resettlement will be audited and that compensation would be paid. However, in the mediation between different stakeholders the OSPF claimed that for “various reasons” the solution to the problem did not get settled. It was during the process, when a technical assistance project was approved by ADB. This technical assistance program had an income restoration program which directly dealt with the problem the complainants were concerned with. They hoped that it would reestablish their livelihoods and assist in alleviating their debt problem. It was in this line of reasoning that the OSPF claimed that the complainants withdrew from the process. The complainant chose to settle their issues with the new technical assistance team. In this, the OSPF agreed and turned the case over to the new team for information and communication.

**Case 6: People's Republic of China: Fuzhou Environmental Improvement Project
(1/2009)**

This complaint was filed by a group of 37 people who were to be resettled by the project and was received on the 15th of January 2009.⁶⁴ This case was mainly concerned with resettlement and compensation. The complainants sought to resolve inadequate compensation, arguing that the compensation not following ADB's initial plan and its related policies. They expressed concern for their new abodes and livelihoods after resettlement.

In the Review and Assessment Report, it was found that the government and the complainants had no room for compromise in the settlement of the issue. The complainants were in agreement with the OSPF recommendations while the government was not. Government commented on RAR that the report clearly describes the complainants' concerns but didn't completely include government's concerns. They felt this report has kind of inclination towards the complainants. Residents who had illegally settled in the area had no rights to remain and subsequently to attain land titles in the pertaining area. In the RAR, the compensation amount was acquired by adding land acquisition cost along with house building cost, reward for removal, cost of removal and transitional fee. However, in the government perspective, land acquisition cost should have been replaced with initial purchase cost of the to-be demolished house. Due to the strong conflicting views, the OSPF failed to settle the issue.

⁶⁴ Specifically, the complainants were to be resettled due to the Nantai Island river rehabilitation.

Case 7: Pakistan: Southern Punjab Basic Urban Services Project (3/2009)

This complaint was filed by a group of people in Urdu and was received on the 27th of February 2009. This case was concerned with resettlement and the environment. The complainants sought to resolve the loss of agricultural land, and loss of standing crops, and the loss of the “natural beauty” of area.⁶⁵ The complainants claimed that the resettlement plan was planned on misunderstood information of the area.⁶⁶ They argued that based on the resettlement plan and the Environmental Impact Assessment, the approval on the part of the Environmental Protection Agency was questionable. They also questioned the design and the need assessment of the project.

In the Review and Assessment Report, it stated that the OSPF paused the program to re-examine the project. During the pause, the OSPF proposed to examine the issues with the project location and compensation. On this action, the government asserted that the project was well placed, well planned, and environmentally safe. The government offered higher compensation rates to come into agreement with the complainants and restart the project. However, from the report, the result of the process was unclear.

⁶⁵ The standing crops were claimed to be destroyed by the contractor.

⁶⁶ The resettlement plan referred here was announced in December 2007.

Case 8: Pakistan: Rawalpindi Environmental Improvement Project (Sewage Treatment Plant Component) (6/2009)

This complaint was filed by PAPs from the village of Jabbar Miana⁶⁷ and was received on the 28th of May 2009. This case was concerned with land acquisition, compensation. The complainants sought to resolve inadequate compensation and environmental concerns. The project was to utilize land that was used for agriculture. The complainants were concerned with said agricultural land. The issue stirred up due to the complainants' crops in the said land. It is also important to note that the complainants were compensated for the land already, though the construction had not been initiated. The complainants were primarily concerned about the compensation rates for their land, asserting inadequate compensation. They also raised environmental issues.

In the Final Report, it stated that compensation rates were only amendable by law;⁶⁸ and that the project was suspended and closed unfinished, and therefore the OSPF process also terminated. The national law of Pakistan rendered the process of consultation meaningless for the complainants because they would not receive sought compensations through the ADB accountability mechanism.

Case 9: Kazakhstan: CAREC Transport Corridor I Investment Program (12/2009)

This complaint was filed by PAPs and was received on the 5th of November of 2009.⁶⁹ This case was concerned with information, participation, and infrastructure. The

⁶⁷ The case was later joined by some tenants and farmers from Adiala, Gorakhpur, and Gidhpur.

⁶⁸ No change was made in the compensation rates due to this.

⁶⁹ Around 30 people signed on the request.

complainants sought to resolve the lack of necessary infrastructure, and access to water and the highway. The complainants' main concern was the need for two of cattle passages and a bridge for agricultural machinery, related to the construction of roads and bypasses.

According to Maya Eralieva,⁷⁰ the NGO was fairly surprised when their opinion and comments on the issue were not well received by the OSPF. She wrote that the comments made on the Review and Assessment Report were not well received wherein the OSPF "was not in any way obliged to accept comments and additional suggestions/concerns." Furthermore, the OSPF refused to accept "additional issues that have not been included in the original complaint." She argued that though it is important to be well structured in terms of procedure, the OSPF must also be sensitive and flexible to the needs of the complainants. Another issue raised was the media. She claimed that the restriction on media campaigns and publications during the consultation process and the problem-solving phase was not in favor of the complainants. This is an important issue because "the problem-solving process and its procedures are lengthy, complicated and difficult for most stakeholders," wherein the complainants are the most vulnerable.

In the Final Report, it stated that clarification on passages, paved road for agricultural machinery, and water wells were promised. After the process, the OSPF confirmed that all issues relating to the project were settled with the complainants and other stakeholders. During the process, the problem was delved further into the needs of the complainants and the need for additional infrastructure (wells) was agreed upon and was promised to be constructed. Although the main concern over the issue was settled,

⁷⁰ Member of the NGO Forum on ADB; in *Is ADB Accountable* (2011)

other related issues pertaining to the ownership, operation, and maintenance of the new infrastructure were yet to be settled. Leaving the issue to the stakeholders, the OSPF closed the case based on the complainants' will to settle the issues with the government and the ADB.

Case 10: Tajikistan: Education Sector Reform Project (2/2010)

This complaint was filed by three NGOs representing complainants from the Roshtkala District and was received on the 14th of September 2010. This case was concerned with information, consultation, and school reconstruction. The complainants sought to resolve the lack of information on scope and budget, the lack of information about the rehabilitation of schools, and the uncertain roles of the stakeholders. The scope of the project was for the rehabilitation of five schools and the District Education Department building in Roshtkala. In response to the complaint, the government formed a working group comprising all stakeholders. The group discussed the issues such as the budget and funding of the project and, the roles and responsibilities of stakeholders, and the monitoring scheme. The group made a site visit and spotted issues in the rehabilitation of the buildings. Various issues were settled through the group amongst the stakeholders and the OSPF took account. They took the findings and discussions of the group and reviewed the situation further. The OSPF recommended “a course of action comprising facilitated meetings, reporting on the progress of works, and a final joint monitoring and evaluation.” The rehabilitation was later confirmed through a site visit and a consultation. The report also stated that the complainants, along with the other stakeholders, were satisfied with the process.

According to Saodat Saidnazarova and Maya Eralieva,⁷¹ the OSPF initially was uncooperative to the call for information. They claim that their letters were ignored and at times answered “by merely providing documents.” When they were successful in having a meeting, they claim that the request of the complainant representative for a site visit on the part of the ADB was ignored. Through whatever reason they had to experience such difficulty in engaging the ADB, the case was well handled once the complaint was taken by the OSPF. They claim that “this case was one of the rare examples wherein all concerned parties... sat under one table and discussed how to improve the project outcomes in terms of: more inclusive benefits, aid effectiveness, transparency in the decision-making process and accountability of the decision-makers.”

**Case 11: Kyrgyz Republic: CAREC Transport Corridor 1 (Bishkek-Torugart Road)
Project 1 (4/2010)**

This complaint was filed by the PAPs and was received on the 7th of September 2010. This case was mainly concerned with compensation. The complainants sought to resolve compensation and information issues for two shops and some trees that were being removed as part of the improvement of the road. The OSPF found that the issue could be resolved through a revised land acquisition and resettlement plan which made reconsiderations for the complaint. The revised plan would be made in accordance with ADB’s resettlement policy. In the Final Report, it states that the OSPF amended land and resettlement plan to include complainants’ entitlements and “confirmed the payments and the satisfaction of the complainants.”

⁷¹ From NGO Kalam and NGO Forum on ADB respectively; in *Is ADB Accountable* (2011)

Despite reaching a favorable conclusion, the OSPF and the government was criticized on a few points. According to Maya Eralieva,⁷² despite the OSPF clearly recognizing the harm inflicted and the need to hasten the process, the government proved to be uncooperative by asserting that remedial action also need approval by the national assembly and by installing their investigation team which had slowed the process.⁷³ Furthermore, she argues that the cost for the continued site visits, meetings, communication and consultations with all concerned parties have actually been a hundred times more than the amount the PAPs needed for compensation.

Case 12: Indonesia: Integrated Citarum Water Resources Management Investment Program (1/2011)

This complaint was filed by three PAPs and was received on the 4th of January 2011. This case was mainly concerned with resettlement and compensation. The complainants sought to resolve the issues on eviction by Bekasi local government, and unpaid compensation. The issues of the complaint were delved into the compensation for PAPs, the updating and implementation of the Resettlement Plan 2008, the communication of resettlement-related information, consultations, government laws and regulations, and the ADB Policy on Involuntary Resettlement (1995). In the Final Report, it stated that the OSPF assisted in registration for resettlement plan; that the government action was out of reach; and that there was an eventual withdrawal of complaint because the complainants were ascertained that they were re-registered under the ongoing

⁷² Ibid.

⁷³ The complainants argued otherwise regarding the need for approval by the national assembly to take remedial action.

resettlement updating in the Bekasi District.

In the process, the OSPF faced criticism on several points. According to Diana Ross and Arimbi Heroepoetri,⁷⁴ the first complaint on the issue was rejected on false grounds. While their field monitoring work, ARUM (People's Alliance for Citarum) gathered that residents were displaced three times since before the official resettlement initiation date. Despite being also confirmed by the OSPF, they were informed by mail that "that the case was ineligible because... we have not yet brought the problem to the Operations Department." This, they argue, is completely false, stating the point that they "have been communicating with the Operations Department concerning project-related problems since its early stage, even way before approval by the Board of Directors." Furthermore, the authors pointed out the tendency by the OSPF in this case to cater to only the complainants and not the whole PAPs. They assert that the OSPF had promised to "push for the registration of the 872 displaced households as affected persons" for the sake of resettlement benefits. However, in the way he OSPF conducted the consultation phase, the authors claimed that the OSPF has shown that they only wanted to deal with the three complainants.

Case 13: Philippines: Visayas Base-Load Power Project (3/2011)

This complaint was filed by Project Affected People and was received on the 28th of February 2011. This case was concerned with consultation, information, and environmental impact. No additional information and data was disclosed on the ADB website. The NGO Forum on ADB (2010) strongly criticized the KEPCO and the ADB

⁷⁴ Members of ARUM (People's Alliance for Citarum); in *Is ADB Accountable* (2011)

for the lack of consultation in the construction of the coal power plant. They criticized that the project failed in terms of social responsibility. They claim after interviewing the residents that many of the residents were left in the dark regarding the project. The issues were the lack of consultation, the disclosure of information about the harmful effects of the coal power plant, and the disclosure of the result of the environmental impact assessment. They claim that the project interviews with the residents were mostly made on situations where the residents were simply not aware of the consequences of the project.

According to Jose Aaron Pedrosa, Jr.,⁷⁵ The complaint was filed by Naga residents represented by FDC-Cebu, to which the OSPF responded, and held a meeting five days later. The author criticized the OSPF for coming unprepared for the meeting. Although the OSPF made a site visit round the coal ash dumping areas, the author claims that the consultants in the meeting were not fully aware of the problems at hand. She claims that they were also not aware of the complaint in detail. Furthermore, the author criticized unprofessional actions of the hired consultants. It was disclosed by one of the PAPs that the consultants attempted to discredit the NGO “as being unqualified to represent them” in the process. It was due to the conduct of the OSPF hired consultants that the complainants expressed disappointment and withdrew from the mediation process.

⁷⁵ Secretary-General, Freedom from Debt Coalition – Cebu Chapter ; in *Is ADB Accountable* (2011)

Case 14: Cambodia: Rehabilitation of the Railway in Cambodia Project (6/2011)

This complaint was filed by 155 signatories and was received on the 21th of November 2011. This case was concerned with resettlement, information, and consultation. The complainants sought to resolve issues regarding inadequate compensation, compensation payment, and poor infrastructure in the resettlement area. The complainants raised concerns regarding their compensation for relocating and about the poor infrastructure at the relocation sites. They wanted compensation at replacement cost, and allowances to sustain the families during the transition. The complainants alleged that it was because the compensation was inadequate that they were forced into debt. In addition to the problem, resettled people were no better off due to inadequate basic services in the resettlement area.

In the Final Report, it stated that the OSPF conducted a capacity building workshop, made corrections in the compensation that increased payment, and that ADB and stakeholders improved infrastructure in the resettlement area (roads, fences, wells, water reservoir, water filtration, waste management). Although the main concern over the issue was settled, other related issues pertaining to the ownership, operation, and maintenance of the new infrastructure were yet to be settled. Leaving the issue to the stakeholders, the OSPF closed the case based on the complainants' will to settle the issues with the government and the ADB.

Case 15: Samoa: TAs 8481 and 7387 (SAM): Promoting Economic Use of Customary Land and Grant No. 0392 (SAM): Samoa Agribusiness Support Project (2/2014)

This complaint was filed by four *matais* and was received on the 9th of September 2014.⁷⁶ This case was concerned with the lack of consultation, the use of customary land, the lack of due diligence regarding the society and environment, and the non-disclosure of documents. The complainants sought to resolve lack of consultation and information to see benefits equally distributed. In the process, OSPF concluded that the complaint could be resolved “through the problem-solving process involving more consultations among stakeholders.” Among its recommendations, the OSPF asserted that use of customary land must be minimized and that prior consent of landowners must be acquired when the customary land is needed. In the Problem Solving Completion Report (SPFC) of the Special Project Facilitator, it stated that the complainants were satisfied and the mediation was successful.

Case 16: 2/2016 Georgia: MFF Sustainable Urban Transport Investment Program – Tranche 3 (2/2016)

This case could not be assessed because the review process was not finished.

⁷⁶ “Matais” are the chiefs of the Samoans.

Table 4. Summary of Eligible Complaints of the Office of the Special Project Facilitator

Eligible complaints received and registered by the Office of the Special Project Facilitator (OSPF)					
#	Case	Name of Project	Issues	Resolution sought	Satisfaction
1	1/2004	Nepal: Melamchi Water Supply Project (MWSP)	● Agriculture ● Compensation ● Environmental Impact Assessment (EIA) ● Forestry ● Indigenous peoples ● Information ● Land acquisition ● Resettlement ● Social Uplift Program	Project documents disclosure Inadequate compensation Project design changes	Dissatisfied – corroborated with NGO data Documents attained through the consultation phrase Compensation deemed fair after clarifications Project design changes out of OSPF mandate SPF case dropped for compliance review
2	2/2004	Sri Lanka: Southern Transport Development Project (STDP)	● Environmental Impact Assessment (EIA) ● Social Impact Assessment (SIA) ● Compensation ● Resettlement	Project design changes Other issues	Dissatisfied – corroborated with NGO data Mentions bias on hired facilitator and Former Special Project Facilitator Contrasting views on hired mediator
3	1/2005	Indonesia: Community Empowerment for Rural Development Project	● Village Infrastructure ● Community Participation ● Information Sharing	Loss of income and time Transportation problems that lead to a decline in agricultural production and conflict	Satisfied – corroborated with NGO data Through consultations and fact-finding on village level (5 villages), local resolutions led to satisfaction of complainants

Eligible complaints received and registered by the Office of the Special Project Facilitator (OSPF)					
#	Case	Name of Project	Issues	Resolution sought	Satisfaction
4	4/2006	Pakistan: National Highway Development Sector Investment Program	● Land acquisition ● Compensation ● Resettlement ● Information	Info Consultation Compensation	Satisfied - Info shared Compensation settled Construction of extra infrastructure to secure safe passage near the highway
5	2/2007	Cambodia: Phnom Penh to Ho Chi Minh City Highway Project	● Compensation ● Land Titling ● Livelihood	Compensation Funding Title to resettlement land Project on job creation	Satisfied – corroborated with NGO data, Not due to the OSPF Satisfaction achieved through new TA project approved by ADB
6	1/2009	People's Republic of China: Fuzhou Environmental Improvement Project	● Resettlement	Compensation inadequate Compensation not following ADB plan and rules	Dissatisfied – (RAR) Complainants fine with recommendations while the government was not
7	3/2009	Pakistan: Southern Punjab Basic Urban Services Project	● Resettlement ● Environment	Loss of natural beauty of area, Loss of agricultural land, Contractor destroyed standing crop	Unclear – (RAR) Paused program to re-examine, proposed to examine project location and follow through with compensation
8	6/2009	Pakistan: Rawalpindi Environmental Improvement Project (Sewage Treatment Plant Component)	● Land Acquisition ● Compensation	Compensation inadequate Environmental concerns	Dissatisfied – Compensation rates only amendable by law (no change) Project suspended and closed unfinished OSPF process also terminated

Eligible complaints received and registered by the Office of the Special Project Facilitator (OSPF)					
#	Case	Name of Project	Issues	Resolution sought	Satisfaction
9	12/2009	Kazakhstan: CAREC Transport Corridor I Investment Program	● Information ● Participation ● Cattle passes for ● Underpass for agricultural machinery	Number of cattle passages Bridge for agricultural machinery Access to water Access to the highway	Satisfied – corroborated with NGO data, Mentions bias in restrictions, Clarification on passages Paved road for agricultural machinery Well dug up for water
10	2/2010	Tajikistan: Education Sector Reform Project	● Information ● Consultation ● School Reconstruction	Information on scope and budget, and the role of stakeholders Information about the rehabilitation of schools	Satisfied – corroborated with NGO data, Mentions bias in early stages, Government formed working group Joint agreement, monitoring, and evaluation
11	4/2010	Kyrgyz Republic: CAREC Transport Corridor 1 (Bishkek-Torugart Road) Project 1	● Compensation	Compensation Information	Satisfied – corroborated with NGO data, Amended land and resettlement plan to include complainants' entitlements
12	1/2011	Indonesia: Integrated Citarum Water Resources Management Investment Program	● Resettlement ● Compensation	Eviction by Bekasi local government Compensation payment	Dissatisfied – corroborated with NGO data, Mentions bias of OSPF in mediation, Assisted in registration for resettlement plan Government action out of reach Eventual withdrawal of complaint

Eligible complaints received and registered by the Office of the Special Project Facilitator (OSPF)					
#	Case	Name of Project	Issues	Resolution sought	Satisfaction
13	3/2011	Philippines: Visayas Base-Load Power Project	● Consultation ● Information ● Environmental impact	No data	Unsatisfied - No data from ADB, based on NGO data only, hired consultant unprofessional behaviour causing complainants to drop case
14	6/2011	Cambodia: Rehabilitation of the Railway in Cambodia Project	● Resettlement ● Information ● Consultation	Compensation inadequate Compensation payment Poor infrastructure in resettlement area	Satisfied - Corrections in the compensation that increased payment ADB and stakeholders improved infrastructure in the resettlement area (roads, fences, wells, water reservoir, water filtration, waste management)
15	2/2014	Samoa: TAs 8481 and 7387 (SAM): Promoting Economic Use of Customary Land and Grant No. 0392 (SAM): Samoa Agribusiness Support Project	● Lack of Consultation ● Use of customary land ● Inadequate environment and social due diligence ● Disclosure of documents	Lack of consultation and information to see benefits equally distributed	Satisfied - (SPFC Report) mediation successful, no other data to confirm
16	2/2016	Georgia: MFF Sustainable Urban Transport Investment Program – Tranche 3	● Compensation ● Resettlement		Process not finished

VI. Conclusion

Conclusion

In the review for bias in the determination of eligibility in the CRP, the researcher found that there was no sign of bias. Although seventeen percent of the CRP complaints had been determined ineligible, the reasons for the denial of review had substantial basis. In the case of the OSPF, a significant number of complaints had questionable reasons for ineligibility. Fifteen percent of the OSPF complaints did not have a reason stated for ineligibility. This makes the process susceptible to suspicion for bias in the determination. Furthermore, more than half of the OSPF complaints were denied because the OSPF determined that the complainants did not attempt to settle the issue with the Operations Department. The percentage of this reason for ineligibility raises questions of decision making bias. Not only does the instructions for filing a complaint clearly say that there must have been efforts with good faith to address problems with the Operations Department, both letter and form provided for by the ADB provide spaces to write down the instances where resolution with Operations Department was sought for.

In the review for bias in the eligible cases, the CRP showed many instances where bias seems to be present. 62.5 percent of the cases which underwent compliance

review left the complainants dissatisfied.⁷⁷ Of the cases that were determined dissatisfactory, 60 percent of the cases had accusations of bias in the review.⁷⁸ These cases translate into 37.5 percent of the cases that have undergone compliance review of from 2004 to 2016.⁷⁹ Among the accusations, the complainants raised arguments on the overstatement of the OSPF role in the resolution of the problem; on the case where NGO participation was reported to be positively taken but no actual NGO recommendation was heeded; on the case where NGOs were threatened for closure by the government at the request of an ADB consultant; on the case where intimidation and threat by the project implementers were surveyed to have been present but reported otherwise; on the case where encouragement for the availing of the accountability mechanism by the ADB staff was reported but the complainants argued otherwise; on the interpretations on the Environmental Impact Assessments (EIA) and Social Impact Assessments (SIA); and on the issue of ADB staff accountability in cases of serious damage (such as deaths, human right violations, and serious environmental degradation).

In the review for bias in the eligible cases, the OSPF did not show many instances where bias seems to be present. Due to the nature of the consulting and mediating process, the process of the problem solving function did not have issues with bias. On this note, the OSPF reports of the results were compared with NGO data to check for bias. Of the 15 OSPF cases reviewed, 9 cases had NGO data to compare with

⁷⁷ Out of eight reviewed cases, three cases (37.5 percent) were determined to be satisfactory and five cases (62.5 percent) were determined to be dissatisfactory. See Table 3.

⁷⁸ These cases were the Sri Lanka (2004), Philippines (2011), and Cambodia (2012) cases.

⁷⁹ Excluding cases that have not yet finished the compliance review process (cases 2016/2 and 2016/3). See Table 3.

the OSPF results. Of these 9 cases, the researcher determined that 1 case did not have enough data from the NGO and 1 case did not have data provided by the ADB.⁸⁰ In the process, 7 cases were reviewed and in all of the compared cases showed matching determinations of the results.⁸¹ Thus, the researcher was able to conclude that the results reported by the OSPF did not present instances of bias, which is quite comparable to the case of the CRP. Though it is important to note that regardless of bias, less than half of the cases were satisfied with the process.⁸²

Results and recommendations by the CRP and the OSPF are subject to approval by the Board of Directors and the President respectively. Though thought to have been independent bodies that could ensure accountability in the ADB, the AM have at times faced strong accusations of bias. From disqualifying complaints on ambiguous reasons to discrediting NGOs when dealing with complainants, these kinds of accusations undermine the goal of accountability claimed to be aspired by the ADB.

Aside from bias, lack of basic information was observed to be the main hindrance to accountability. Timely information disbursement with feedback mechanisms would have prevented or mitigated the unforeseen consequences of the projects. Another major deterrent is their fear of being targeted by government authorities for harassment, persecution and intimidation. Though it may be difficult to deal with, the ADB needs to leverage influence on future projects for the protection of basic human rights in its projects.

⁸⁰ These cases were the Cambodia (2007) and the Philippines (2011) cases.

⁸¹ See Table 4.

⁸² Ibid. 7 out of 15 cases reviewed.

Recommendations

Based on the findings of the research, the researcher recommends the following. First, the “OD First” rule needs stricter guidelines and transparency. The discrepancy between the allegations of the ADB staff and the complainants in some cases are blatantly put, downright outrageous. The issues deal with the sustenance of very vulnerable people and the complaints are their last option. To deny the right to the process because several phone calls to the staff in-charge do not suffice as a genuine attempt to reconcile issues with the operations department, is biased in favor of the ADB. It is understandable to such rule is needed on an administrative restriction. Yet, the attempts to resolve the issue have been undertaken, which in several occasions have been rejected. The ADB AM needs to fine-tune this rule to be more externally accountable.

Second, the bias accusations in the compliance review needs to be settled. The researcher recommends measures such as stronger internal checks between the Board Compliance Review Committee and the Compliance Review Panel, and more allotted time and means of communication on draft report response for the complainants. The Accountability Mechanism needs to be make more effort to be trusted as a recourse to the problems that arise from the projects.

Third, the problem solving capability of the OSPF needs to be strengthened. Though the mandate is clear, the OSPF has been criticized for being unable to provide solutions for the problems caused when the stakeholders do not come into agreement. The ultimate purpose of the AM is to provide redress for the damages caused on the vulnerable. If the capability of the OSPF cannot be strengthened, and its mandate cannot be changed, then a solution may be to provide special recommendation functions to the

OSPF to recommend new projects on cases where problems were not solved. Several cases that were stagnated by differences between stakeholders' opinions were actually settled due to new projects that resolved the problems. Providing the OSPF with the recommendation function to recommend the initiation of new projects on failed cases could solve the capability issue of the OSPF.

Finally, given the time frame and resources constraints, the research was heavily reliant on the documents made available by the ADB and the NGO Forum on ADB. The review of the problem solving function in particular proved problematic due to insufficient data. Further research with key informant interviews is recommended to fully grasp the position differences between the ADB and the complainants in the compliance review and problem solving function in the ADB.

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Appendix

[Appendix 1]

GAP guidelines: Evaluation (including complaint investigation)

Organizational policy and capacity

E1 Policy development

E1.1 The organizational policy on evaluation is developed in consultation with stakeholders and relevant experts, and reflects the needs of stakeholders.

E2 Policy content

E2.1 The organization has a policy on the need for evaluation of activities, and its role in increasing accountability to stakeholders.

E2.2 Evaluation takes place for key activities, with the objectives of:

- Providing information to report to key stakeholders on progress against goals agreed with these stakeholders
- Providing information to feed into management and learning, both throughout and at the end of the activity.

E2.3 The policy states that key stakeholders should be involved in evaluations.

E2.4 The organization has a policy and processes for ensuring learning from evaluations is used within the organization:

- Processes exist to feed information and learning from the monitoring and evaluation back into the activity, to contribute to activity effectiveness and success
- Mechanisms exist for feeding back information and learning from the monitoring and evaluation into the organization.

E2.5 The organization has a policy that evaluation results and recommendations are reported on fully.

E3 Governance

E3.1 Responsibility for oversight and implementation of the evaluation policy is assigned to a member of the Board, and responsibilities are cascaded throughout the organization as appropriate, to ensure the policy objectives are reflected in goals and activities at all levels of the organization.

E3.2 A system of incentives and sanctions for employees is operated to ensure compliance with the organization's policy on evaluation.

E3.3 Evaluation of the evaluation policy and evaluation processes occurs on a regular basis in consultation with stakeholders.

E3.4 An appeal process exists, which allows stakeholders to appeal when they feel they

have wrongly been denied input to evaluations. This process conforms to the guidelines set out in the Complaint and Response Mechanisms section.

E4 Resources

E4.1 Resources are assigned for the implementation of the evaluation policy throughout the organization, which covers staff and operational costs.

E4.2 Relevant staff at all levels within the organization are trained in evaluation and monitoring procedures and the use of results.

E4.3 Within the organization, expert resources are available to advise on evaluation at all levels.

E4.4 Evaluators, both internal and external, are trusted, credible and impartial.

E5 Accessibility: information availability

E5.1 Information on the organization's evaluation policy, engaging with evaluations and accessing results of evaluations is actively disseminated in a clear and easily understandable manner to key stakeholders in appropriate forms and through appropriate media. Appropriate form may include catering for different languages, visual impairment, deafness, etc; appropriate media may include print, the World Wide Web, video, audio, public meetings, etc.

E5.2 Information on the organization's evaluation policy, engaging with evaluations and accessing results of evaluations is easily available to stakeholders in appropriate forms and through appropriate media.

E5.2 Contact details for a relevant person in the organization are provided.

E6 Accessibility: user-friendliness

E6.1 Key stakeholders are not prevented from participating in evaluation for reasons of physical access or communication barriers.

Evaluation Practice

E7 Stakeholder

E7.1 The evaluation for an activity meets the informational needs of key stakeholders: involvement

- An analysis is undertaken for each planned evaluation to identify key stakeholders and their information needs
- The evaluation is designed to ensure all identified informational needs are met.

E7.2 Relevant stakeholders are involved in the evaluation of a specific activity:

- Defining the objectives and parameters of the evaluation in the planning stage
- Participating in data collection and analysis if appropriate
- Forming conclusions and recommendations
- Ensuring appropriate changes are made and learning processes are initiated

- Ensuring appropriate reporting of the evaluation.

E7.3 Clear and comprehensive information on the evaluation is provided to stakeholders throughout the evaluation:

- Evaluation objectives and parameters prior to evaluation
- Evaluation design prior to evaluation
- Results and recommendations from the monitoring and evaluation
- Progress on implementation of the recommendations from the evaluation.

E7.4 Stakeholder involvement in the evaluation conforms to the guidelines in the Participation section.

E8 Evaluation set-up

E8.1 The purpose and objectives of the evaluation are communicated clearly. & planning

E8.2 The evaluation is designed so that outputs meet stakeholder needs.

E8.3 The methodologies identified for use are appropriate to the situation.

E8.4 Identification of indicators considers data sources and availability, feasibility of data collection, data accuracy and reliability.

E8.5 The plan for evaluation is feasible in terms of budget, capacity and timescales.

E8.6 The timing of monitoring and evaluation outputs is planned so as to feed into decision-making processes.

E8.7 Clear responsibility is allocated for the delivery of the evaluation.

E9 Data collection

E9.1 Appropriate methods of data collection are used. & analysis

E9.2 Data is checked for errors.

E9.3 Data is systematically analyzed.

E9.4 Conclusions and recommendations are justified from the data.

E9.5 Outputs from the data analysis enable action.

E10 Monitoring

E10.1 Results are processed and released on a regular basis to inform the ongoing development and & learning decision-making within the activity.

E10.2 Adjustments to the activity are made as needed during the monitoring process.

E11 Reporting

E11.1 An accurate report of the evaluation process is made available to describe objectives, participants, methodology and approach, results, conclusions and actions to be taken. Confidentiality is protected when necessary, and reasons for this are provided.

E11.2 Evaluation reports are disseminated to key stakeholders on a timely basis.

E11.3 Evaluation reports are made publicly available.

E12 Specific evaluation

E12.1 In addition to evaluating specific activities, the organization will evaluate the following: organization performance with respect to its mission and objectives; financial performance; social impact; environmental impact; compliance with legal requirements; employee rights and conditions; compliance with human rights; compliance with relevant internal and external voluntary codes of conduct.

C6 Accessibility: user-friendliness

C6.1 The design of the mechanism caters to the situation and needs of the stakeholders for which it is intended. In user-friendliness particular the mechanism meets the needs of the most vulnerable.

C6.2 Requirements for filing a complaint take into account the likely capabilities of the complainants, and consider minority and disadvantaged stakeholders.

C6.3 Independent support is available to help stakeholders understand whether their complaint is valid and to provide technical/legal advice if necessary.

C7 Assessment of complaint validity

C7.1 Validity of complaints is assessed against a clear, published definition of, and criteria for, a complaint.

C7.2 The decision on acceptance or rejection of a complaint is transparent, and the decision and reasons for making the decision are communicated clearly to the complainant.

C7.3 In the case of a complaint being rejected, advice is provided to the complainant regarding how and where to progress/refer the complaint.

C8 Process of investigation

C8.1 The investigation team has the appropriate skills and knowledge to investigate the complaint.

C8.2 The investigation plan is agreed in consultation with the complainant.

C8.3 Clear timelines for the investigation and decision of the complaint are produced and communicated, and the investigation is completed on a timely basis.

C8.4 The investigation team is able to undertake the full range of investigations desired (including accessing internal documents and making site visits), including consulting with key stakeholders.

C8.5 The investigation is conducted in a sensitive and appropriate manner, dependent on circumstances, and taking into account cultural, gender, religious and other matters where necessary.

C8.6 Information gathered is treated confidentially.

C8.7 The investigation team ensures comprehensive documentation and records of the

investigation.

Outcomes

C9 Redress for the complainant

C9.1 Decisions on appropriate response are taken with reference to published guidelines, take into account the situation and local conditions, and are determined in consultation with the complainant.

C9.2 Responsibility and timelines for the implementation of the response are assigned.

C9.3 Agreement is reached that the complainant is satisfied with the outcome.

C10 Organizational corrective action

C10.1 The outputs from the mechanism include recommendations for corrective and preventative action within the organization.

C10.2 The organization has processes and responsibilities in place for assessing complaints cases, identifying causes, drawing lessons from these, and feeding this back into the appropriate part of the organization.

C11 Post-resolution follow-up

C11.1 The implementation of actions (both response and corrective action) is monitored by the complaint mechanism (it could also be monitored by an independent, external third party).

C11.2 A process is in place to enable complainants to appeal if the recommendations are not satisfactorily implemented.

[Appendix 2]

List of Ineligible Cases of the ADB (2004-2016)

CRP

(2004/2) Melamchi Water Supply Project

(2015/1) Greater Mekong Subregion: Rehabilitation of the Railway in Cambodia Project

OSPF

(3/2004) Philippines: Sixth Road Project

(1/2006) Pakistan: Chasma Right Bank Irrigation Project-Stage III

(2/2006) Bangladesh: Khulna-Jessore Drainage Rehabilitation Project

(3/2006) Nepal: Rural Electrification, Distribution and Transmission Project-Thankot-Chapagaun
Bhaktapur 132 kV Transmission Line

(5/2006) India: Assam Power Sector Development Project

(6/2006) Viet Nam: GMS Mekong Tourism Development Project

(1/2007) Nepal: Urban and Environmental Improvement Project

(2/2009) India: Himachal Pradesh Clean Energy Development Investment Program

(4/2009) Pakistan: North-West Frontier Province Road Development Sector and Subregional
Connectivity

(5/2009) Pakistan: National Trade Corridor Highway Investment Program

(7/2009) Pakistan: National Trade Corridor Highway Investment Program

(8/2009) Pakistan: Rawalpindi Environmental Improvement Project (Water Supply Component)

(9/2009) Azerbaijan: East-West Highway Improvement Project

(10/2009) Azerbaijan: Multitranche Financing Facility Road Network Development Program

(11/2009) Sri Lanka: National Highways Sector Project

(13/2009) Indonesia: Integrated Citarum Water Resources Management Investment Program

(1/2010) Kazakhstan: CAREC Transport Corridor I Investment Program

(3/2010) Philippines: Power Sector Development Program

(5/2010) Kyrgyz Republic: Technical Assistance: Regional Economic Integration in Central Asia

– Stocktaking and Experience Sharing

- (6/2010) Kyrgyz Republic: Southern Agriculture Area Development Project
- (7/2010) Georgia: Sustainable Urban Transport Investment Program
- (2/2011) India: North Eastern Region Capital Cities Development Investment Program
- (4/2011) Pakistan: Proposed MFF National Trade Corridor Highway Investment Program - Hasanabdal-Havelian Section (Project 2)
- (5/2011) India: Kerala Sustainable Urban Development Project
- (7/2011) Kazakhstan: CAREC Transport Corridor I Investment Program
- (1/2012) Cambodia: Rehabilitation of the Railway in Cambodia Project
- (2/2012) India: Kerala Sustainable Urban Development Project
- (1/2013) Cambodia: Rehabilitation of the Railway in Cambodia Project
- (2/2013) Cambodia: Rehabilitation of the Railway in Cambodia Project
- (3/2013) Armenia: Zvartnots Airport Expansion Project (Phase 2)
- (4/2013) Kyrgyz Republic: Loan 2755 (SF): CAREC Corridor 1 (Bishkek-Torugart Road) Project 3
- (5/2013) Armenia: Zvartnots Airport Expansion Project (Phase 2)
- (6/2013) Pakistan: Emergency Reconstruction Project
- (1/2014) Nepal: Secondary Towns Integrated Urban Environmental Improvement Project
- (1/2015) Nepal: Melamchi Water Supply Project
- (1/2016) Pakistan: MFF Power Distribution Enhancement Investment Program – Tranche 2
- (3/2016) Georgia: MFF Sustainable Urban Transport Investment - Program Tranche 3
- (4/2016) Georgia: MFF Sustainable Urban Transport Investment Program - Tranche 2 (Section 3)
- (5/2016) Georgia: MFF Sustainable Urban Transport Investment Program - Tranche 2 (3rd section of Tbilisi-Rustavi Road)
- (6/2016) India: Uttarakhand State-Road Investment Program – Tranche 3

[Appendix 3]

SAMPLE COMPLAINT LETTER

(Date)

Complaint Receiving Officer
Accountability Mechanism
Asian Development Bank
6 ADB Avenue, Mandaluyong City
1550 Metro Manila, Philippines

Dear Sir:

We, who have signed this letter, are residents of *(MAILING ADDRESS OF COMPLAINANTS)* and would like to file a complaint regarding the *(NAME OF PROJECT)*, an ADB-assisted Project.

We believe that due to this Project, we have suffered or are likely to suffer the following:
(LIST DOWN ALLEGED DIRECT AND MATERIAL EFFECT OF PROJECT TO COMPLAINANTS)

We have previously raised our concerns with the *(SPECIFY ADB OFFICE)*, but are not satisfied with the results. Below is a summary of what happened:

(INSERT SUMMARY OF EVENTS)

Hence, we are choosing problem solving with the Special Project Facilitator (SPF) or compliance review with the Compliance Review Panel (CRP). *(CHOOSE ONE)*

We request (or do not request) that you keep our identities confidential.

We have authorized Mr./Mrs./Ms. _____, with the following details, to represent us in this complaint:

Mailing Address : _____

Email: _____

Telephone: _____

Fax: _____

(OMIT THIS PARAGRAPH, IF THERE IS NO REPRESENTATIVE.)

Please see below our other contact details:

Email: _____

Telephone: _____

Fax: _____

Sincerely,

Signature

Name of Complainant with designation (e.g. Mr., Mrs., Ms.)

Signature:

Name of Complainant with designation (e.g. Mr., Mrs., Ms.)

Signature:

Name of Representative with designation (e.g. Mr., Mrs., Ms.)

(OMIT THIS PORTION, IF THERE IS NO REPRESENTATIVE)

[Appendix 4]



Asian Development Bank (ADB), Accountability Mechanism, Complaint Form
(Add rows or pages, if needed)

A. Choice of function - problem solving or compliance review (Choose one below)

☐ **Special Project Facilitator** for problem solving (Assists people who are directly and materially harmed by specific problems caused, or is likely to be caused, by ADB-assisted projects through informal, flexible, and consensus-based methods with the consent and participation of all parties concerned)

☐ **Compliance Review Panel** for compliance review (Investigates alleged noncompliance by ADB with its operational policies and procedures in any ADB-assisted project in the course of the formulation, processing, or implementation of the project that directly, materially, and adversely affects, or is likely to affect, local people, as well as monitors the implementation of remedial action relates to the harm or likely harm caused by noncompliance)

B. Confidentiality

Do you want your identities to be kept confidential?

☐ Yes

☐ No

C. Complainants (Anonymous complaints will not be accepted. There must be at least two project-affected complainants.)

Name and designation (Mr., Ms., Mrs.)	Signature	Position/ Organization (If any)	Mailing Address	Telephone number (landline/mobile)	E-mail address
1.					
2.					

Authorized Representative or Assistant (if any). (Information regarding the representatives, or persons assisting complainants in filing the complaint, will be disclosed, except when they are also complainants and they request confidentiality.)						
Complainant represented	Name and designation (Mr., Ms., Mrs.)	Signature	Position/ Organization (if any)	Mailing Address	Telephone number (landline/mobile)	E-mail address

D. Project

Name	
Location	
Brief description	

E. Complaint:

What direct and material harm has the ADB-assisted project caused, or will likely cause, to the complainants?
Have the complainants made prior efforts to solve the problem(s) and issue(s) with the ADB operations department including Resident Mission concerned? ☐ Yes. If YES, please provide the following: when, how, by whom, and with whom the efforts were made. Please describe any response the complainants may have received from or any actions taken by ADB. ☐ No

F. Optional Information

1. What is the complainants’ desired outcome or remedy for the complaint?
2. Anything else you would like to add?

Name of the person who completed this form: _____

Signature: _____ Date: _____

Please send the complaint, by mail, fax, e-mail, or hand delivery, or through any ADB Resident Mission, to the following:

Complaint Receiving Officer (CRO), Accountability Mechanism
ADB Headquarters, 6 ADB Avenue, Mandaluyong City 1550, Philippines,
Telephone number: +63-2-6324444 local 70309, Fax: +63-2-6362086,
E-mail: amcro@adb.org